
Case Number 2057.0

A Rising Storm

Eric Garner and the Explosive Controversy over Race & Policing

Few people really want to know what it takes to keep them safe. Policing is the kind of work—like sewage treatment, care of the elderly, legislating, embalming, and combat—that most of us prefer not to think about. It's both ugly and essential, so essential that it creates a feeling of shame and resentment—and to avoid being disturbed by the thought we push it out of our minds, into the shadows, where the cops who protect us go about the dirty work of using the threat of violence to enforce the law.

George Packer, "The Heart of Policing," *The New Yorker*, January 6, 2015.

Introduction

It should have been a minor incident. Following an order from a local precinct lieutenant, New York City plainclothes officers stopped Eric Garner, 43, on July 17, 2014 as he walked down Bay Street on Staten Island, about a half mile from the ferry terminal in the Tompkinsville neighborhood. They intended to arrest him on charges related to selling loosies—individual cigarettes from untaxed packs.

The story of what followed has been widely told and retold. Garner did not immediately submit to arrest. He was tackled by police and held down, an arm crooked around his neck. He lost consciousness, received no medical intervention at the scene, and died en route to the hospital. The incident, captured as a cell phone video, was posted online.

Garner's death and his repeated last words—"I can't breathe"—soon became the iconic rallying cry of a national movement protesting the deaths of unarmed black men at the hands of police in separate incidents across the country. Less than three weeks after Garner's death, John Crawford III, 22, was standing in the aisle of a Walmart store in Beavercreek, Ohio, talking on a cell phone and idly swinging a toy air gun he had pulled from a store shelf, when he was gunned down by an officer who mistook him for a shooter. Four days after that came the controversial shooting death of an unarmed 18-year-old, Michael Brown, in Ferguson, Missouri, after an altercation with a police officer. The stories kept coming over the next weeks and months: the shooting death of Tamir Rice, a 12-year-old playing with a toy gun at a Cleveland recreation center; the shooting death of Walter Scott, 50, as he fled from a traffic stop for a broken tail light; the death of Freddie Gray, 25, handcuffed and in the custody of Baltimore police, when his neck was broken during a van ride to jail.

Over a period of weeks, protest actions erupted in city after city. A national "Black Lives Matter" campaign—

This case was written by Pamela Varley, Senior Case Writer, for Christopher Robichaud, Lecturer in Ethics and Public Policy at the John F. Kennedy School of Government (HKS), Harvard University. HKS cases are developed solely as the basis for class discussion. Cases are not intended to serve as endorsements, sources of primary data, or illustrations of effective or ineffective management.

Copyright © 2016 President and Fellows of Harvard College. No part of this publication may be reproduced, revised, translated, stored in a retrieval system, used in a spreadsheet, or transmitted in any form or by any means without the express written consent of the Case Program. For orders and copyright permission information, please visit our website at <http://www.case.hks.harvard.edu/> or send a written request to Case Program, John F. Kennedy School of Government, Harvard University, 79 John F. Kennedy Street, Cambridge, MA 02138.

initiated after the fatal 2012 shooting of Trayvon Martin, 17, in Sanford, Florida¹—rocketed to instant fame. Human rights experts at the United Nations exhorted the United States to address police racism. U.S. President Barack Obama created a task force to recommend ways to improve relations between police and minority communities. In a December 2014 AP poll, editors and news directors from across the country voted police killings of unarmed blacks the most important news story of 2014.ⁱ

The national conversation about the topic was emotional and acrimonious. Many police and their defenders called the issue a damaging media invention that fueled hatred of cops. Denying any broad pattern of violent or racist behavior among the police, they also believed that the general public drastically underrated the dangers and difficulties inherent in maintaining public safety in poor and volatile neighborhoods, where patrol officers sometimes had to make life and death decisions in a fraction of a second. Others in the debate argued that there was a problem with the police, but differed over exactly what it was. Was it an individual problem—a few bad apples? Was it a societal one—implicit racial bias? Was it an institutional issue—over-aggressive policing and training protocols? Or were there simply uncomfortable trade-offs inherent in keeping the streets safe? Civil rights activists cast a wider net still, viewing the incidents as part and parcel of larger inequities in the criminal justice system and the shameful national history that had given rise to racialized “ghetto” neighborhoods in the first place. In that context, clashes between the police and African Americans were part of a long continuum. As prominent African American author Ta-Nehisi Coates wrote, “All of this is old for black people.”ⁱⁱ

The Bad Old Days

In New York City, the public debate took on a particular focus: the city’s much-vaunted crime prevention strategies, collectively credited by many criminologists with effecting a dramatic and precipitous drop in felony crime in the city.

The New York Police Department had introduced these strategies in the mid-1990s, during a tide of violent crime in New York City. “People younger than 30 and those who have come to New York in the last 15 years have no memories of the ‘bad old days’ here,” wrote New York Police Commissioner William J. Bratton² and criminologist George L. Kelling³ in a 2015 magazine article.ⁱⁱⁱ

The crack cocaine epidemic of the late 1980s and early 1990s was widely thought responsible for the soaring murder rate in New York City in these years. At the peak of the violence, in 1990, the city suffered “unrestrained bloodshed and wanton mayhem,” according to the *New York Daily News*.^{iv} That year, the police logged 2,605

¹ Trayvon Martin, 17, was fatally shot by George Zimmerman, a neighborhood watch volunteer, in Sanford, Florida. Martin, a resident of Miami Gardens, Florida, was staying with his father and his father’s fiancée at her townhouse. On the evening of February 26, 2012, Martin went to a convenience store and purchased candy and juice. As Martin returned from the store, he walked through a neighborhood that had been victimized by robberies several times that year. Zimmerman claimed that he and Martin, who was unarmed, had an altercation and that he shot Martin in self-defense. He was eventually charged with second-degree murder and manslaughter, but acquitted by a jury in July 2013.

² Bratton served as New York City Police Commissioner under Mayor Rudy Giuliani from 1994-1996, and was re-hired to the post in 2014 by Mayor Bill de Blasio.

³ Kelling and James Q. Wilson introduced the Broken Windows theory in a 1982 *Atlantic* magazine article: “Broken Windows: The police and neighborhood safety,” March 1982, <http://www.theatlantic.com/magazine/archive/1982/03/broken-windows/304465/>, retrieved July 31, 2015.

murders—a city record; 5,368 rapes; 112,381 robberies; and 92,105 aggravated assaults. Crimes of property⁴ were astronomical: 208,813 burglaries, 536,012 thefts, and 187,591 vehicle thefts.^v No city residents were immune from New York’s high crime in this period. Wrote Bratton and Kelling:

“Normal” was removing your car radio and posting a sign in the window reading “No Radio” to discourage a break-in. Normal was subway patrons clustering together to protect themselves against predators. Normal was getting your windshield spat on and wiped with a dirty rag, or being “helped” by having your bags grabbed at Penn Station and then being forced to “tip.”^{vi}

But the brunt of the crime—and the overwhelming majority of the violent crime—fell heavily on New York’s most isolated and impoverished neighborhoods—areas that lay within, or spanned across, the boundaries of the toughest 20 of the city’s 75 precincts. The residents of these neighborhoods—and the victims of the crime—were overwhelmingly black or Hispanic.

The story of how these neighborhoods became so vulnerable to crime and social disorder was a complicated one, but the U.S. government bore much responsibility for the creation of poor, rundown, racially isolated neighborhoods. [See Appendix 1. The Creation of Racialized Urban “Ghetto” Neighborhoods.] In this fertile soil, the crack epidemic took root in the 1980s and the criminal drug trade became a violent and competitive free-for-all. In a place where it was said to be easier to get an illegal gun than a legal job, gun violence exploded. Michael Javen Fortner, academic director of urban studies at the CUNY School of Professional Studies, was a child in the high crime neighborhood of Brownsville, Brooklyn in this period. He was only about two-years-old when his older brother was stabbed to death with an ice pick following a dispute in the early 1980s. A *Chronicle of Higher Education* reporter accompanied Fortner to the area where he grew up, and wrote the following:

Fortner... remembers the “constant and subtle terror” of living in the 15-story, red-brick housing project that occupied the now-vacant lot near where we’re standing. Drug dealers loitered out front, making him scared to enter and leave. Addicts knocked on his door peddling stolen goods, like radios or an uncooked chicken. He kept his wallet with him in bed at night to hide it from addicts in his own family. Lying there, he flinched at the sound of gunshots.^{vii}

Residents of Brownsville and similar neighborhoods, trying to lead lawful, peaceful lives, were appalled at the catastrophic social breakdown around them, the escalating violence, and the brazen criminal gangs that, increasingly, ruled the streets as they battled one another for turf. Despite longstanding concerns about disproportionate police abuse of blacks, many African Americans pushed for greater police protections in this period. Fortner wrote of a “silent majority” of inner city blacks⁵ who, for many long years, took a hard line on drug crime, in particular. “I have a lot of black friends from Ivy League schools who are part of finance or academics, and

⁴ A word about nomenclature. Robbery refers to an in-person crime in which belongings are taken via force or the threat of force and is categorized as a violent crime. In a theft, belongings are taken without force, the threat of force, or fraud. Burglary refers to the unlawful entry into a structure to commit a felony or theft.

⁵ Fortner published a book in 2015 called *Black Silent Majority: The Rockefeller Drug Laws and the Politics of Punishment*, which posits that in the 1960s and 1970s, African Americans played a key role in developing the tough drug and sentencing laws that later became a major target of criticism by civil rights activists. (Harvard University Press, September 2015.)

they are completely on the left on this, focused on police brutality,” he told New York Magazine. “And then I also have some people—friends from when I was growing up, relatives—they have a much different view of these issues.”^{viii} [For a different perspective about the same period, see Appendix 2, Excerpt from National Public Radio’s Fresh Air interview with Ta-Nehisi Coates.]

The ‘New York Miracle’

Between 1990 and 2010, crime did fall—steadily and dramatically—in New York City. “For the past two decades New Yorkers have been the beneficiaries of the largest and longest sustained drop in street crime ever experienced by a big city in the developed world,” wrote Franklin Zimring, director of Criminal Justice Studies at the University of California/Berkeley, in a 2011 article.^{ix} During the last three years of the Dinkins’ administration, violent crime declined 8 percent and property crime, 13 percent. But the greatest drop came during Mayor Rudy Giuliani’s first term, 1994-1997, when violent crime fell 36 percent and property crime, 28 percent. Rates continued to fall, albeit at a gradually decreasing rate, and finally appeared to hit a plateau after 2010. Overall, violent crime in New York City fell 64 percent between 1990 and 2013, and property crime, 62 percent. The murder rate dropped an astonishing 75 percent.^x [Exhibit 1]

Dispute about the numbers. Identifying why, exactly, the crime rate had dropped was tricky, however. For one thing, New York’s success did not occur in a vacuum. Crime rates were also dropping nationwide, albeit less dramatically. Violent crime declined 36 percent nationwide between 1990 and 2013. The reasons for this drop were perplexing to experts. According to UC Berkeley’s Zimring, the likeliest explanation was a “mix of increased incarceration, higher prosperity, aging population and mysterious cyclical influences.”^{xi}

But these explanations did not fit the situation in New York City—at least not entirely. For one thing, the drop in crime was far more pronounced, across the board, in New York: a 64 percent drop in violent crime compared with a 36 percent drop nationwide; a 75 percent drop in the murder rate compared with a 39 percent drop nationwide. Though New York was, by a wide margin, the country’s largest city, its homicide rate was, in 2010, dramatically lower than that of the four next largest U.S. cities: Los Angeles, Chicago, Houston, and Philadelphia. What’s more, while the national incarceration rate increased 65 percent between 1990 and 2008, in New York, incarceration dropped 28 percent in the same period.^{xii}

Skeptics were quick to proffer theories about why New York’s official crime statistics—called “the New York Miracle”—were not really what they seemed, but in a 2011 article, Zimring debunked these theories one by one. Some naysayers argued that the data simply weren’t true—that police were fudging the numbers, but Zimring countered that overall, the numbers were corroborated by independent sources. The city was safer only because it had gentrified, argued others. But Zimring argued that only Manhattan had gentrified, yet crime had decreased at comparable levels in the city’s four largest boroughs (Manhattan, Queens, Brooklyn, and the Bronx). Still others argued that crime was down simply because the crack cocaine epidemic had subsided on its own. But Zimring argued that while drug violence was down, drug use, itself, appeared to remain fairly constant over time. The bottom line, Zimring concluded, was that “the one aspect of crime policy wherein the municipal government enacted big changes—and the only obvious candidate to take credit for the city’s crime decline—was policing.”^{xiii}

Crime Prevention in Gotham

In the 1990s, the City of New York embarked on a major shift of policing strategy—an emphasis on crime prevention. Previously, reducing crime had been regarded as something beyond the realm of the police. “The primary occupation of police in the 1970s and 1980s was responding to 911 calls reporting crimes and emergencies, and for years the scene in New York and other cities was of shrieking, lit-up squad cars hurtling away from streets boiling with crime toward some unknown destination where, presumably, even worse transgressions were taking place,” wrote Michael Greenberg in the *New York Review of Books*.^{xiv}

One of the NYPD’s biggest initiatives in the 1990s was the determined effort to shut down the city’s public open-air drug markets. New York increased the size of its Narcotics Squad by 137 percent between 1990 and 1999. The unit targeted the street corners and empty lots where drug buyers and sellers came together. Such areas were subject to violent shootings, as drug dealers competed with one another over turf. Zimring believed that this unit, alone, probably reduced much violence in the city, as similar efforts did in other cities.^{xv}

The initiatives that won New York its greatest acclaim, however, were a trio of more innovative policies: CompStat, Broken Windows, and Stop-and-Frisk.

CompStat. The centerpiece of New York City’s crime prevention strategy was CompStat, or data-driven policing, an idea primarily credited to Jack Maple, who served as deputy police commissioner of operations under Police Commissioner Bratton in the mid-1990s. CompStat entailed the careful day-to-day monitoring of criminal activity, the identification of high crime hot spots or impact zones, the heavy deployment of police to these areas, and the practice of holding precinct captains responsible for the crime rate of their respective jurisdictions.

Broken Windows. Broken Windows,⁶ a theory introduced by James Q. Wilson and George L. Kelling, in the March 1982 edition of the *Atlantic Monthly*,^{xvi} called for a crackdown on minor infractions of the law—public drunkenness, loitering, trespassing, turnstile jumping, and the like. The theory held that such low-level civil breaches created an atmosphere of disorder and lawlessness which, in its turn, created a breeding ground for more serious criminal activity. Restore order—so said the theory—and crime will fall.

While New York became famous as the first major jurisdiction to implement Broken Windows, UC Berkeley’s Zimring contends that history has this one wrong—or at least, partly wrong. What the New York Police Department did was to markedly increase misdemeanor arrests⁷—by 56 percent between 1994 and 2010, from 187,385 to 292,219.^{xvii} To be sure, some of these arrests were made for quality-of-life infractions. During the Dinkins and Giuliani administrations, the transit police cracked down on turnstile jumping and graffiti, and the NYPD cracked down on the squeegee people, who solicited money from drivers in return for providing a generally unwanted

⁶ Giuliani popularized the phrase “zero tolerance” to describe Broken Windows—a term of art rejected by Bratton and Kelling. “Critics use the term ‘zero tolerance’ in a pejorative sense to suggest that Broken Windows policing is a form of zealotry—the imposition of rigid, moralistic standards of behavior on diverse populations,” they wrote in 2015. “It is not. Broken Windows is a highly discretionary police activity that requires careful training, guidelines, and supervision, as well as on ongoing dialogue with neighborhoods and communities to ensure that it is properly conducted.” (“Why we need Broken Windows policing,” by William J. Bratton and George L. Kelling, *City Journal*, Manhattan Institute, Winter 2015.)

⁷ Felony arrests fell 36 percent between 1994 and 2014. (HKS calculation based on figures in *Broken Windows and Quality of Life Policing*, by William J. Bratton, April 2015, http://www.nyc.gov/html/nypd/downloads/pdf/analysis_and_planning/gol.pdf, retrieved September 24, 2015.)

windshield wash while they were stopped in traffic. But according to Zimring, the lion's share of the new misdemeanor arrests served other purposes.

Stop-and-Frisk. The NYPD also stepped up its use of street stops in high crime areas. Under the Stop-and-Frisk program, officers were encouraged to stop people they suspected had just committed a crime, or were on the brink of doing so. "An officer observes someone, say, going from car to car looking into the windows," explained Bratton. "Exercising discretion, the officer decides whether to stop the person for questioning." The officer might also run a background check on the person, checking for outstanding warrants. A more intrusive "frisk" was supposed to happen only if the officer had reason to suspect that the person was armed and dangerous. In such a case, "he may frisk him by conducting a pat-down of his outer clothing," wrote Bratton. "If the officer detects an object that may be a weapon, he may reach into the subject's pocket."^{xviii}

The idea of stopping someone who appeared suspicious was certainly not new in the annals of policing. "When I was a rookie 31 years ago, we were taught that police have a 'common law right of inquiry,' meaning we could ask questions about almost anything we see on the street," wrote Ernie Naspretto, a retired Brooklyn precinct captain, in a 2012 article. But beginning in the 1990s, the NYPD increased the number of stops and also began documenting them, in compliance with the CompStat program.

When Mayor Bloomberg took office in 2002, he made the reduction of guns a signature initiative of his administration. Stop-and-Frisk became the cornerstone of the anti-gun program, as well as a strategy for reducing crime, generally. In these years, "there is no doubt that Stop-and-Frisk [became] more aggressive," wrote Naspretto.^{xix} According to data compiled by the New York Civil Liberties Union, the NYPD made 97,296 stops in 2002. During the first ten years of the Bloomberg administration, that number rose, year by year, reaching its peak in 2011 at 685,724 stops.^{xx}

The Many Functions of Misdemeanor Arrests

In his 2008 book, *Cop in the Hood*, sociologist Peter Moskos provided a roadmap to the role of arrests for a beat cop in a high crime neighborhood. Felony arrests carried a certain prestige within the police force, but were mostly the province of detectives. Beat cops, by contrast, were in the business of making misdemeanor arrests. Crimes against persons or property were arguably the most serious misdemeanors and these crimes made up about 30 percent of the increase in New York City's misdemeanor arrests between 1994 and 2010, according to an April 2015 report by Police Commissioner Bratton. The increase in such crimes was primarily due to two things—(1) an increase in thefts, as small portable electronic devices became easy prey, and (2) increased reports of domestic violence, as definitions of domestic violence liberalized.^{xxi}

Other misdemeanor crimes were considered less serious and enforcement was often discretionary. Such arrests served an array of useful functions for a beat cop. Discretionary arrests allowed officers to respond to neighborhood complaints—drunk and disorderly conduct, public urination, excessive noise, trespassing—the kind of infractions that did fit squarely in line with the Broken Windows philosophy.

But in a 2011 interview, Zimring wrote that, especially in the 1990s, the patrol officers in high crime neighborhoods were not especially interested in arresting people just for minor infractions, Broken Windows

notwithstanding. “[T]hey wanted to take the robbers and the burglars and the shooters off the streets,” said Zimring. “In the immortal words of [Deputy Commissioner of Operations] Jack Maple... they were looking for ‘sharks and not for dolphins.’” And, he added, “The way they did that is they took suspicious persons and they instrumentally arrested them for small crimes.”^{xxii} Drug dealers, for example, were notoriously difficult to catch, as they delegated drug handling to underlings.^{xxiii} But it was fairly easy to arrest a drug dealer on misdemeanor charges, allowing police to disrupt his business and get him off the streets, even if only for a few hours or a few days.

A Beat Cop View of Police Work in the Inner City

In his 2015 book-length essay about growing up black in America, Ta-Nehisi Coates recalled his childhood in a tough Baltimore neighborhood. “Fear ruled everything around me,” he wrote. In a world where violence could erupt at any moment, “the streets transform every ordinary day into a series of trick questions, and every incorrect answer risks a beat-down, a shooting, or a pregnancy. No one survives unscathed.”^{xxiv}

The police sent in to patrol such areas quickly found themselves subsumed by that culture, according to Joe Poss, a former NYPD beat cop working a tough precinct in Brooklyn: “Cops adapt to their environment. The ghetto transforms them.”

Ghetto cops wear the rough-edged camouflage of the ghetto. It’s slipped into their manner and into their thinking. It’s ugly and it’s hard, and outside the ghetto it would be seen as a failing. But inside, within the boundaries of poverty and wreckage, it’s been turned around, twisted a hundred and eighty degrees, so that all the flaws are virtues. They’re a street code that, translated, means the cop is tough enough and smart enough to survive.^{xxv}

Among his fellow officers, there was little sympathy for an inner city cop who was too soft, too lazy, too easily played, or too ready to call for back-up, Poss added: “He knows that if he makes a mistake by turning his back on the wrong person, letting his guard down or just showing something that can be mistaken for weakness, he can get hurt or shot dead. And he wouldn’t die a hero. Other cops, after hearing the circumstances, would shake their heads and know that he ‘died stupid.’”^{xxvi}

In practice, both Moskos and Poss wrote, an important goal for any patrol officer in a tough neighborhood was simply to command respect, so that local residents—criminal, non-criminal, and somewhere in between—would pay attention and follow orders when necessary. Thus, while officially operating out of the same rule book as police in any other neighborhood, policing looked very different in a high crime neighborhood than it did, say, in midtown Manhattan.

“In order to have... authority, police need to be respected or feared,” Moskos wrote in *Cop in the Hood*. “Most officers won’t physically threaten because they don’t want to be in a position, if challenged, where they have to beat somebody to live up to their word.”^{xxvii} Threatening arrest was therefore preferable—but an officer had to be prepared to deliver on the threat, even if everyone understood that the particular pretext for the arrest (say, trespassing) was spurious:

“I’m locking you up,” an officer may say, “‘cause you didn’t listen to me.” ... The trespassing arrest is legal, but police want the suspect to believe that the real crime is failure to obey rather than the technical violation of sitting on a stoop in front of a “no trespassing” sign.^{xxviii}

In similar fashion, wrote Poss in his memoir, *Brooklyn Bounce*, police stops were sometimes used to command respect:

In the ghetto, this is the way it works. You pull up to a drug location at three in the morning and toss the dealer, steerer, banker, and lookout under the Right of Common Inquiry. Why? Because they’ve disrespected you by not “stepping off” (walking away) when you drove by. You know they’re running a drug operation, and they know you know it. And the respect they should show is to curtail business for forty seconds at the sight of you. And if they don’t, then you stop the car, get out, and toss them. And it’s, “Yo! Motherfucker, take your hands out of your fucking pockets and get on the wall. Don’t even fucking look at me, look at the fucking wall.”^{xxix}

It was, in Poss’ words, “street theater,” designed to make a point.

Overtime & Quotas

Arrests and police stops sometimes served personal and bureaucratic goals, as well.

“Collars for dollars.” Some officers were eager to make discretionary arrests for a self-serving reason—to rack up overtime in booking and court appearances. This led to many end-of-shift arrests. “Arrests are labor intensive and time-consuming,” wrote Moskos. “The simplest arrest, something like loitering, takes about an hour for the arresting officer to process: paperwork relating to the arrest, paperwork relating to the charging of the prisoner, and commute to Central Booking for court paperwork.” And cases that went to trial resulted in far more overtime. Wrote Moskos, “More serious cases can drag on over many months, even years—that’s a lot of overtime.”^{xxx}

Meeting quotas. Officially, there were no quotas for arrests, street stops, or tickets at the NYPD. State law prohibited the imposition of police quotas. But there were “productivity goals” with consequences for advancement and promotion. Within the police force, these were routinely, if unofficially, called quotas, and they were quite controversial.

Some argued that the arrest quotas were not really burdensome—that any good officer should be able to meet them without trying. But the truth, according to Moskos, was that good cops saw quotas as insulting, while “using quotas to force ‘production’ from bad or lazy officers results in bad citations and arrests.”^{xxxi} Officers who were burned out or cynical tended to lie low and do the minimum. If pressed to fill a quota for arrests, these officers tended to make the easiest, lowest-risk arrests possible. Arresting a junkie, for example, might do little to make the streets safe, but junkies were known to be docile.^{xxxii}

Quotas were a driver, too, in New York City’s Stop-and-Frisk program. Under CompStat, police resources were deployed heavily to high crime areas. As the Stop-and-Frisk mandate grew during the Bloomberg administration,

the number of stops grew, and that hit the impact zone neighborhoods very hard. In 2011, the peak year for street stops, police made 685,724 documented stops—an average of 1,879 stops per day.^{xxxiii} At such levels, Moskos wrote, “the sheer number of officers needing somebody to cite becomes overbearing.”^{xxxiv}

The Lessons from New York Miracle?

Crime statistics suggest that something in New York was working, in the years between 1990 and 2014; the city reduced serious crime to a higher degree than that achieved by any other large American city.⁸ But while Zimring was convinced that police work was at the heart of that change, he also believed it was hard to identify which of the NYPD’s myriad crime prevention strategies were truly crucial to the city’s success. “[T]here was a whole kitchen sink full of changes that took place in New York City policing,” Zimring said. “Now the question is—was all this aggressiveness, focused on poor minority males in high crime neighborhoods, necessary to these dramatically successful results?”

The answer is a resounding “we don’t know.” We don’t know how necessary the most costly parts of aggressive policing are to the results of policing in New York. We don’t have a detailed crime control recipe book here. I’d love to have written the Julia Child cookbook of urban crime control: *here’s the recipe for an 80 percent reduction that will work in your neighborhood!* We are way away from that.^{xxxv}

Mounting Criticism on the Home Front

All communities are filled with non-criminals, hardcore criminals, and those who might commit crime if the opportunity presented itself. It’s the police’s job—and it’s not an easy one—to distinguish among those three groups. Hardcore criminals need to be locked up and occasional criminals deterred, but harassing and ticketing non-criminals is neither necessary nor fair.^{xxxvi}

Peter Moskos, *Cop in the Hood*, 2008

In the 2000s, especially, residents of New York’s high crime neighborhoods increasingly complained that NYPD cops were not doing a good job of distinguishing good guys from bad guys. “Do we welcome the police? Of course. I know I do, and I know 99 percent of the people in the area do,” said Greg Jackson of Brownsville, Brooklyn, a former basketball star, longtime director of the Brownsville Recreation Center, and local civic leader in a 2010 interview.

But they also fear the police because you can get stopped at any time. There’s a group of kids coming from the rec center—they’re getting stopped like they’re criminals. But those are the good kids. They’re the kids that are trying to go to school, that are trying to get a scholarship and do something with themselves. So now they become fearful of the cops, and resentful of the cops, and that’s the problem.^{xxxvii}

⁸ Even internationally, New York City’s safety rating was quite respectable. The *Economist* ranked New York tenth in safety out of 50 important worldwide cities selected for comparison—higher than Hong Kong, San Francisco or Montreal. (“The Safe Cities Index 2015: Overall,” Economist Intelligence Unit, January 2015, https://safecities.economist.com/wp-content/uploads/2015/01/EIU_Safe_Cities_Index_2015_white_paper-1.pdf, retrieved October 6, 2015.)

Community organizer Mark Winston Griffith, of Crown Heights, Brooklyn, reports that he was out jogging when he was suddenly surrounded by three police cars. The police stopped him, frisked him, and just as quickly departed, he said, without a word of explanation. “Unfortunately, rather than looking at the police as allies, I more often view them as an occupying army,” he wrote in a guest column in the *New York Daily News*.^{xxxviii}

“The NYPD has become predators in our community,” Renée Marhong, a nurse in Staten Island told a reporter. “They’ve alienated themselves. They’ve criminalized a large group of the population, and they’re just hurting themselves and their reputation.”^{xxxix}

In this period, the Stop-and-Frisk program, in particular, came in for heavy criticism.

The alleged abuses of Stop-and-Frisk. At its peak, in 2011, the NYPD reportedly made more stops of young black men (168,126) than there were young black men in the entire city (158,406).^{xl} That meant that a subset of young men living in impact zones was stopped over and over again. “From the time I was 15 to 18, I would say I was stopped, questioned and frisked at least 60 to 70 times,” said Tyquan Brehon, an African American teenager from Brooklyn featured in a *New York Times* online video.^{xli} Only 6 percent of people stopped were subsequently arrested. But even those not arrested were sometimes taken down to the local precinct house to cool their heels for a few hours. As Brehon described it to the *Times*:

I’ve been taken in a lot of times because if you’re stopping me, I’m going to want to know why. And that’s when you could hear that change in their tone. They start to get a little more aggressive. And you feel threatened. They were like, “if you’re going to talk back, we’re going to take you in. If you’re going to ask questions, we’re going to take you in.” You sat in the precinct for like eight or nine hours, with a bunch of people you don’t know. They put the cuffs on really tight, and it stinks, and you don’t get fed. All this time, I know I’m innocent. They just kept me there till 4 in the morning, then let me out the back door.^{xlii}

In 2008, the New York-based Center for Constitutional Rights filed a class action lawsuit challenging the NYPD’s Stop-and-Frisk practices, alleging that many stops violated the Fourth Amendment (which protects against unreasonable searches and seizures by the government) and that the NYPD engaged in racial profiling (a violation of the 14th Amendment’s equal protection clause). The suit noted that, while the stated purpose of Stop-and-Frisk was to confiscate guns or prevent an imminent crime, in point of fact, only 2 percent of stops resulted in confiscation of a gun and only 6 percent, in an arrest. On the UF250 forms the NYPD used to document stops, officers frequently cited “furtive movements” as the basis for the stop, a category the plaintiffs charged was over-vague. Furthermore, the suit alleged, many of those stopped were subsequently frisked or searched without legal grounds. The vast majority of those stopped citywide—83 percent between 2004 and 2012—were either black or Latino, though these two demographic groups combined made up only slightly more than 50 percent of the city population.^{xliii} “When you’re young and you’re black, no matter how you look, you fit the description,” Brehon told the *Times*.^{xliv}

Mixed views of ‘Broken Windows.’ Among black and Hispanic residents, opinions about the Broken Windows policy were more mixed. In fact, even in August 2014—a month after the Eric Garner incident, at a time when the

NYPD was polling poorly among black voters⁹—60 percent of blacks surveyed by Quinnipiac University and 66 percent of Hispanics answered yes to the question, “Do you want police to actively issue summonses or make arrests for so-called quality of life offenses in your neighborhood, or not?”^{xlv}

That said, there were certain types of arrests that tended to provoke particular criticism. One example was the NYPD practice of making arrests for possession of small quantities of marijuana, predominantly inside the city’s impact zones.

Marijuana arrests. Between 1996 and 2011, the NYPD made 586,320 misdemeanor marijuana arrests—50,000 in 2011.¹⁰ “The vast majority of people arrested for this offense were African American or Latino, even though all races report using drugs at comparable rates,” stated Human Rights Watch in 2014.^{xlvi} New York State had largely decriminalized possession of marijuana in quantities smaller than 25 grams in 1977, but there was a loophole. If the marijuana was “on public view,” the person could be arrested for even a tiny amount. Thus, in high crime neighborhoods, a police officer might stop a person (under the Stop-and-Frisk program) and, depending on the circumstances, either frisk him or ask him to empty his pockets. If a joint or a small baggie of pot were discovered, it was now “on public view”; the police stop had been converted to a misdemeanor arrest.^{xlvii}

Such offenses rarely resulted in jail time. Often, a misdemeanor marijuana case was dismissed after six months if the person had no further run-in with the law. But “the damage can still be considerable, taking the form of rejected job and housing applications or being banned from joining the military and attending certain colleges,” wrote author Michael Greenberg. “With the aim of maintaining order in poor, high crime neighborhoods, police saddle thousands of young men with criminal records for an offense that the state has largely decriminalized and that white people regularly commit with impunity.”^{xlviii}

Another controversial police practice was that of conducting “vertical patrols” inside housing projects and private low income housing developments.

Vertical patrols. The vertical patrols were started in the 1990s, according to Bratton, in an effort to crack down on drug dealers. When the NYPD closed down many of New York’s open air drug markets, the dealers took their trade inside low income housing developments, public and private. Robberies also began to increase in these buildings in the same period. The NYPD thus began to patrol common areas of the buildings.^{xlix} Such patrols were, to police, a dangerous assignment, because they often entailed walking down unlighted, twisting stairwells, where a cop could easily be ambushed, with no time to pull a weapon; some officers conducted such patrols with their guns drawn.^l

⁹ Asked “Do you approve or disapprove of the way New York City Police are doing their job?” 57 percent of blacks surveyed and 52 percent of Hispanics said “disapprove.” (“New York City Voters Want Their Broken Windows Fixed, Quinnipiac University Poll Finds; ‘No Excuse’ For Garner Death, Voters Say Almost 3-1,” Quinnipiac University, <http://www.quinnipiac.edu/news-and-events/quinnipiac-university-poll/new-york-city/release-detail?ReleaseID=2075>, retrieved October 7, 2015.)

¹⁰ Due to complaints from state courts, the NYPD brought the number down in succeeding years, but still made 39,000 misdemeanor marijuana arrests in 2012 and 28,000 in 2013. (Drug Policy Alliance statistics, as quoted in “New York City Bar Association Report on the NYPD’s Stop-and-Frisk Policy,” May 2013, <http://www2.nycbar.org/pdf/report/uploads/20072495-StopFriskReport.pdf>, retrieved September 19, 2015, and “‘Broken Windows’ and the New York police,” by Michael Greenberg, *New York Review of Books*, November 6, 2014, <http://www.nybooks.com/articles/archives/2014/nov/06/broken-windows-and-new-york-police/>, retrieved September 15, 2015.)

In an effort to identify and remove criminal outsiders, police officers frequently stopped people inside the buildings, under Stop-and-Frisk, and asked to see their ID. If the person could not produce an ID showing that s/he was a legal resident of the building, the police sometimes made an arrest for trespassing. At the peak of the effort, in 2009, the NYPD made more than 20,000 arrests for trespassing. But residents complained that, in addition to arresting criminals, the police frequently arrested legitimate visitors of the buildings' tenants and sometimes, the tenants themselves. In 2010, the NAACP Legal Defense and Education Fund and the Legal Aid Society filed a class action suit challenging the city's vertical patrol program in public housing projects. Two years later, the New York Civil Liberties Union, Latino Justice, and the Bronx Defenders filed a separate class action suit challenging the program in private low income buildings. "I feel like a prisoner in my own home," said Letitia Ledan, a plaintiff in the latter lawsuit. "I have more fear of them than I do of any criminal element." Added another woman, interviewed by the New York Civil Liberties Union, "It's not a pleasant experience to go through, and it's embarrassing when you have people over. They call it Fort Knox, and nobody wants to come and visit you."^{li}

Bloomberg & Kelly: A Failure to Understand the Nature of Crime

To former Mayor Bloomberg, his police commissioner Raymond Kelly, and many in the NYPD, the complaints presented in lawsuits and, increasingly, in the media, painted a maddeningly skewed picture of police practices. The NYPD was not "racially profiling," they argued. The reason so many of the people stopped were black or Hispanic was because the great majority of the city's violent criminals—92 percent of murder suspects and 97 percent of shooting suspects in 2013—were black or Hispanic. That fact might be rooted in historic unfairness, but it was a present-day reality, they argued.

What's more, they contended that the fact that few stops resulted in gun confiscation or arrest showed the success of the Stop-and-Frisk program, not its failure. Between 2003 and 2013, the NYPD took 8,000 guns off the street and 80,000 other weapons, primarily through street stops, according to Bloomberg.^{lii} That created a deterrent effect; a criminal or street tough who had, in the past, routinely walked the streets with a gun tucked into his waistband now hid his weapon at home to avoid arrest and confiscation. That, in turn, led to a reduction of impulse shootings, police spokesmen argued; a prospective shooter had to go home, get the gun, and plan an attack—a series of steps that allowed tempers to cool and ultimately reduced violence. In addition, a stop—say, because a person appeared to be casing a building—might not end in arrest, but would almost certainly lead the person to abandon the crime. Arrests should not be the measure of Stop-and-Frisk's success, they argued; reduced crime rates should be. New York's crime rates were remarkably low by big city standards in the United States—but it was unlikely that these rates would remain low if the police were forced to abandon their crime prevention strategies, city leaders warned.^{liii}

Finally, Bloomberg and Kelly were frustrated at the lack of recognition for the black and Latino lives saved by police, in the form of reduced street violence. In a 2012 op ed column, Kelly stated that the NYPD's crime prevention programs "have saved more than 5,600 lives in New York's poorest neighborhoods in the last decade."^{liv} Even so, he noted, hundreds of people were still shot or killed each year, and the great majority of the victims were black or Latino. Why weren't the NYPD's critics upset about that, Kelly asked?

[C]ritics with short memories and questionable motives continue to misrepresent America's most diverse police department as racist. The fact remains that the Police

Department must continue to fight crime where it finds it, and use those tactics that have proven successful.^{lv}

Civil Rights Activists: Seeing a Larger Context

Many police critics, however, grew frustrated when complaints of police excesses were answered with an argument about “black-on-black” violence, calling it a diversionary tactic that failed to address legitimate grievances. Indeed, the workings of the criminal justice system—the police, the courts, the jails—had, for many activists, become the new battleground in an ongoing civil rights struggle. The United States had the highest incarceration rates in the world and African Americans made up a disproportionate share of those in jail or prison. According to U.S. District Court Judge Jed S. Rakoff, serving in the Southern District of New York, “about one in nine African American males between the ages of twenty and thirty-four is now in prison, and if current rates hold, one-third of all black men will be imprisoned at some point in their lifetimes.” What’s more, he wrote, national incarceration levels had increased 500 percent over the past 40 years, and “most of the increase in imprisonment has been for nonviolent offenses, such as drug possession.”^{lvi}

Civil rights activists were further frustrated at what they regarded as a kind of national amnesia, in which the government laws and policies that had created impoverished, racialized, high crime neighborhoods were forgotten. [See Appendix 1. The Creation of Racialized Urban “Ghetto” Neighborhoods] The “weight” and “shame” of those neighborhoods “rests solely upon those who are dying in them,” wrote Coates in 2015. “There is a great deception in this. To yell ‘black-on-black crime’ is to shoot a man and then shame him for bleeding.”^{lvii}

The Election of Mayor Bill de Blasio

On August 12, 2013, U.S. District Court Judge Shira Scheindlin ruled the NYPD Stop-and-Frisk program, as practiced, unconstitutional. She ordered immediate reforms to the program and a monitor to oversee them. Mayor Bloomberg, arguing that the judge was biased against the police and did not “understand how policing works,” promised to appeal the ruling.

By the time of the ruling, however, the NYPD had already brought its Stop-and-Frisk numbers down from its 2011 high of 685,724 to 532,911 in 2012 and 191,558 in 2013. What’s more, Stop-and-Frisk had become a major issue of contention in New York City’s 2013 mayoral election. Bill de Blasio had campaigned on a promise to drastically curtail Stop-and-Frisk. De Blasio, New York’s elected Public Advocate,¹¹ was white and married to African American writer and activist Chirlane McCray; the pair had two teenaged children. He won the election with 73 percent of the general vote and 96 percent of the black vote. Three days before assuming office, he declared that he would not appeal Judge Scheindlin’s ruling on Stop-and-Frisk.

De Blasio’s early reforms. In December 2013, before taking office, de Blasio announced his intention to bring William J. Bratton back to New York City government as his police commissioner. The move was widely seen as an effort to reassure city residents and the NYPD that, despite campaigning for police reform, de Blasio would not

¹¹ The public advocate in New York was a citywide elected position created in 1993. The public advocate was first in line to succeed the mayor. S/he was also the presiding officer in the City Council, but was non-voting. The office of the public advocate served as a citizen ombudsman—a link between the electorate and city government.

return New York City to the bad old crime days of the 1990s. It was a controversial move with many African American activists, as Bratton was identified with some of New York City's contentious crime prevention policies. But de Blasio and Bratton both stressed that the times were different, and that crime-fighting must be balanced with new challenges—in particular, crafting a better relationship between the NYPD and the city's minority residents.

Under the new administration, the NYPD stopped using Stop-and-Frisk stops as a measure of police productivity; the number of street stops in 2014 declined 75 percent from 2013 to 46,235 (a 93 percent decline from the peak year for Stop-and-Frisk, 2011). In April, the NYPD also introduced a new segment to its Stop-and-Frisk training course that encouraged officers to show greater respect and decrease tensions during police stops. In addition, officers were given wallet-sized cards which they could, at their own discretion, give out to detainees after a stop. The cards explained the Stop-and-Frisk law, and ended with the sentence, "If you have been stopped and were not involved in any criminal activity, the NYPD regrets any inconvenience."^{lviii}

De Blasio and Bratton also signaled a change of focus by expanding Operation Crew Cut, an initiative of former Commissioner Kelly, reportedly popular both with police officers and with the public, in which police worked cooperatively with parents to help them recognize signs that their children were affiliated with a crew.¹² In line with de Blasio's effort to reduce arrests of mentally ill, substance abusing, and homeless residents, an NYPD Homeless Outreach Unit also began conducting patrols with social workers to help funnel vulnerable residents into safe beds, mental health counseling, and medical care.

These nascent reforms may have cushioned the de Blasio administration against an angrier reaction to the death of Eric Garner in July 2014—but they certainly did not spare it entirely.

The Death of Eric Garner

When two plainclothes officers, Daniel Pantaleo and Justin Damico, approached Eric Garner on July 17, 2014, they did so on the orders of a local precinct lieutenant. Garner, 43, was a local fixture in the Tompkinsville neighborhood, a 395-pound African American man known as "Big E." To his friends, he was a gentle giant, the married father of six. "He played chess and checkers on stools near the curb, peeled off dollar bills for children when the ice cream truck came around and served as a kind of peace-keeper for the motley regulars who occasionally found themselves at odds," wrote one reporter.^{lix}

To police, Garner was a familiar nuisance—one of a half dozen men who sold inexpensive contra-band goods along the block near Tompkinsville Park, a local trouble spot. Police had been trying to crack down on small-scale illegal activity in the area for several months. In the previous five months, Garner had been arrested twice for illegal cigarette sales.^{lx}

¹² Author Michael Greenberg differentiated the crews from the gangs in a 2014 article. While gangs, "such as the Bloods and Crips," engage in organized crime, he said, "crews tend to belong to a single building or block; theirs are local turf wars. Children sometimes have no choice but to identify with a crew in order to be able to walk safely from their apartment to the subway or to school." ("Broken Windows' and the New York police," by Michael Greenberg, *New York Review of Books*, November 6, 2014, <http://www.nybooks.com/articles/archives/2014/nov/06/broken-windows-and-new-york-police/>, retrieved September 15, 2015.)

The sale of cigarettes from untaxed packs was, in New York City, neither a serious offense nor a rare one, but it was a crime. The New York City tax on cigarettes was famously high (\$5.95 per pack; \$4.35 to the state and \$1.60 to the city). In part, this was a means to raise revenue and in part, an effort to dissuade citizens from smoking. But most U.S. states taxed cigarettes at less than \$2 per pack, and U.S. Indian Reservations did not tax them at all, so it was not difficult to buy cigarettes more inexpensively elsewhere, and bring them back into New York City, where many small stores, bodegas, and street vendors sold them, even though they lacked the official New York tax stamp.^{lxi} To the NYPD, the illegal sale of cigarettes on the street was a classic Broken Windows infraction.

During the July 17 police stop, captured on video by a friend, Garner was visibly frustrated. He had just broken up a fight between two neighborhood men; in fact, some of the bystanders initially assumed the police had come about the fight. But, as the combatants departed the scene, the police closed in on Garner.^{lxii} When it became clear they had come to arrest him once again for his cigarette sales, Garner appeared exasperated. He denied wrongdoing, accused the police of harassment, pleaded with them to leave him alone. "This stops today," he said at one point, attempting to wave off the officers as they moved to arrest him. At that, the police moved quickly. One officer, Daniel Pantaleo, crooked an arm around Garner's neck, wrestled him to the ground, then held him face down, while Garner repeatedly gasped, "I can't breathe."^{lxiii} Garner lost consciousness and, for about 10 minutes lay, unresponsive, surrounded by police who were joined, about seven minutes later, by emergency medical personnel. None appeared to recognize the gravity of Garner's medical crisis; no one provided oxygen or cardiopulmonary resuscitation (CPR) at the scene.^{lxiv} Garner was eventually loaded into an ambulance and driven to the Richmond University Medical Center. He went into cardiac arrest en route to the hospital and died.^{lxv} Two cell phone videos of the arrest, captured by bystanders, were posted online.

Early Reactions

The day after Garner's death, Mayor de Blasio was shown the video of the arrest. That same day, he held a press conference. "It was very troubling," de Blasio said, promising a thorough investigation. "I watched it the same way a family member would watch it, and it was very sad to watch." He promised that the entire NYPD police force would receive additional training on proper arrest procedures. On July 19, Pantaleo was stripped of his gun and badge and Damico was placed on desk duty, pending investigation. Two paramedics and two emergency medical technicians were suspended without pay.^{lxvi}

Reverend Al Sharpton, a civil rights activist, spoke at Garner's funeral in Brooklyn on July 23, which was attended by an overflow crowd, with several hundred people gathered outside. Sharpton argued that an official promise of added police training was wholly inadequate. "Let's not play games with this," he said halfway through the service. "You don't need no training to stop choking a man saying, 'I can't breathe.' You don't need no cultural orientation to stop choking a man saying, 'I can't breathe!' You need to be prosecuted."^{lxvii}

At this point in the internal investigation, much hinged on the report of the coroner. Garner had several chronic health problems; he was overweight and suffered both from asthma and hypertensive cardiovascular disease. A key question, therefore, was whether the cause of his death was found to be an injury sustained at the hands of police, or his own underlying health troubles. In particular, there was much discussion about whether Pantaleo had used a "choke hold"—barred by police regulation—to wrestle Garner to the ground and into handcuffs.

On August 1, the coroner ruled Garner's death a homicide caused by "compression of neck (choke hold), compression of chest and prone position during physical restraint by police." The coroner listed Garner's underlying health problems as "contributing conditions." Patrick Lynch, president of the rank-and-file police union, the Patrolmen's Benevolent Association, called the report politically motivated. "This was not a choke hold. It was a big man who had to be brought to the ground to be placed under arrest by shorter police officers," he said. Lynch accused federal and local leaders of demonizing the NYPD: "Police officers feel like they're being thrown under the bus."^{lxviii}

On August 19, the Staten Island District Attorney announced that he would open a Grand Jury investigation into the death of Eric Garner. The Grand Jury would make the decision about whether criminal charges should be brought in the case.

De Blasio & Bratton Acknowledge Problems, Promise Reform

Beginning with his July 18 press conference, the day after Garner's death, and continuing for weeks and months, de Blasio made an effort to keep lines of communication open with minority leaders and organizations. On July 31, de Blasio called together a roundtable of city officials and community leaders, including Police Commissioner Bratton and Reverend Sharpton, to air community concerns.

On September 3, Bratton announced a pilot program in five high crime precincts for police officers to wear body cameras—an idea ordered by Judge Scheindlin in her 2013 decision in the Stop-and-Frisk case, but described at the time as a "nightmare" by former Mayor Bloomberg.^{lxix} Four days later, at a hearing before the City Council, Bratton agreed with critics that police had been too aggressive in poor neighborhoods, and acknowledged the "need for a fundamental shift in the culture of the department."^{lxx} In mid-November, Bratton announced that the NYPD would stop its practice of making misdemeanor arrests in high crime neighborhoods for small quantities of marijuana, handing out tickets instead.^{lxxi}

But even as de Blasio and Bratton tried to improve relations between the police and minority neighborhoods, the Eric Garner case was transformed from a small, if heartbreaking, local incident into something larger: an iconic example of a police officer killing an unarmed black man in a suddenly burgeoning national movement.

Michael Brown & the #BlackLivesMatter Movement

Controversy over police killings of unarmed black men exploded onto the national stage on August 9, 2014 with the shooting death of 18-year-old Michael Brown in Ferguson, Missouri. Tensions between the police and minority communities had already been running high in Ferguson, and the death of Brown set off 16 days of protests that periodically turned violent, as a small but prominent subset of protesters turned to looting, vandalism and arson. Police in riot gear amassed near the site of the shooting, and mounted an aggressive response to the crowds that included tear gas, rubber bullets, smoke bombs and flash grenades.

The shooting and subsequent demonstrations in Ferguson catapulted the issue of police violence toward black men into the national spotlight. The Michael Brown case and the Eric Garner case became linked in the media, alongside a growing list of black people killed by police in other incidents across the country. Protests erupted in many cities, most organized under the banner "#BlackLivesMatter."

Black Lives Matter began as a hashtag, written by two black women—Alicia Garza and Patrisse Cullors—outraged by the decision of a jury to acquit George Zimmerman for shooting Trayvon Martin in 2012. With a third friend, Opal Tometi, they began Tumblr and Twitter accounts, where others could share stories under the #blacklivesmatter hashtag. When the streets of Ferguson erupted in protest after the police shooting of Michael Brown in August 2014, the three women used the hashtag to organize a “freedom ride” to Ferguson; 500 people from 18 cities signed up, but according to one press account, “When they reached Ferguson, Garza was astonished to see her own phrase mirrored back at her on protest banners and shouted in unison by people she had never met.”^{lxxii}

Black Lives Matter swiftly captured the Zeitgeist and caught fire, both as a catchphrase and as an organizing tool. Previously unaffiliated people across the country, many young and without experience as organizers, used the hashtag as shorthand, galvanizing likeminded people to attend large-scale protests against police killings of unarmed black people. By one count, more than 1,000 demonstrations took place under the Black Lives Matter banner between August 2014 and September 2015.^{lxxiii} According to the Black Lives Matter website, run by the women who originated the name, “Black Lives Matter is an ideological and political intervention in a world where Black lives are systematically and intentionally targeted for demise. It is an affirmation of Black folks’ contributions to this society, our humanity, and our resilience in the face of deadly oppression.” The website encouraged dialogue and connections among black people, and provided guiding principles. [Exhibit 2] Leading activists in the Ferguson protests created an extensive policy agenda, broken into 10 categories, under the name Campaign Zero. [See Exhibit 3.]

The Early Wave of Demonstrations in New York

In the weeks immediately following Eric Garner’s death, a number of street protests erupted in New York City—many of them small and spontaneous. The largest of this early wave of protests took place on Staten Island on August 23. But the New York protests were very different in tone from those in Ferguson. For example, in advance of the August 23 “We Will Not Go Back” demonstration, organizers Sharpton and his National Action Network talked with city and police leaders in a determined effort to pre-empt violence. “The trust minorities feel for de Blasio was evident at a demonstration on Staten Island on August 23,” wrote author Michael Greenberg in November 2014.

The crowd, the rhetoric, the atmosphere, were remarkably tame, despite the echoes of unfolding violence in Ferguson, Missouri. The overriding sense was that of a disparate group of New Yorkers making a reasonable point about overaggressive policing with the expectation that it would be heard. Visible police presence was scant, consisting mostly of Community Affairs officers in their cloth caps and high-ranking officers in white shirts who looked on with the air of spectators at a mildly interesting show. Blue-clad officers in riot gear were stationed out of sight of the protesters, ready to swoop down, if called, but no call was needed. If anything, the demonstration highlighted how far New Yorkers are from the sheer hatred by the police and of the police that we saw in Ferguson.^{lxxiv}

That good will began to falter, however, following a string of events in late November and early December.

The Accidental Killing of Akai Gurley

On November 20, 2014, during a vertical patrol in a notoriously violent housing project in Brooklyn, the Louis H. Pink Houses, a police officer shot and killed an unarmed black man in an apparent accident. In that incident, a rookie police officer, Peter Liang, entered an unlit stairwell on the eighth floor with his gun drawn at the same time a young man and woman, frustrated at the slow elevator, entered on the seventh floor intending to walk down. According to police reports, Liang discharged his weapon by mistake and the bullet ricocheted off a wall and struck 28-year-old Akai Gurley in the chest. Bratton immediately declared the killing an accident and called Gurley a “total innocent.”^{lxxxv} But the shooting re-activated debate about police aggression, generally, and the NYPD’s vertical patrol program, in particular.

The Grand Jury Decision

Five days later, on November 25, a St. Louis Grand Jury declined to indict Ferguson Police Officer Darren Wilson in the shooting death of Michael Brown. A week after that, on December 3, a Staten Island Grand Jury declined to indict Daniel Pantaleo in the death of Eric Garner. After the decision was rendered, Pantaleo, speaking publicly for the first time, expressed sorrow for Garner’s death. “I became a police officer to help people and to protect those who can’t protect themselves,” he said in the statement. “It is never my intention to harm anyone, and I feel very bad about the death of Mr. Garner. My family and I include him and his family in our prayers and I hope that they will accept my personal condolences for their loss.”^{lxxxvi}

To many civil rights activists and police critics, however, the two Grand Jury decisions, coming so close together, seemed to demonstrate that, even in the full glare of the media spotlight, police officers who killed unarmed black men were somehow immune from prosecution. Hours after the Grand Jury decision in the Garner case, U.S. Attorney General Eric Holder announced that he would begin a federal civil rights investigation into the incident. When he learned the news, de Blasio canceled a planned appearance at the city’s tree lighting ceremony to meet with Garner’s father and other community leaders. “This is profoundly personal for me,” de Blasio said haltingly in remarks later that day. In speaking with Garner’s family, he continued, “I couldn’t help but immediately think what it would mean to me to lose Dante. Life could never be the same thereafter.”^{lxxxvii} He further recalled “painful” conversations he and his wife had had with Dante. “[B]ecause of a history that still hangs over us, the dangers he may face, we’ve had to literally train him—as families have all over this city for decades—in how to take special care in any encounter he has with the police officers who are there to protect him.”^{lxxxviii}

U.S. President Barack Obama also made public statements in the wake of the Grand Jury decisions. While he did not offer an opinion on the particular cases, he acknowledged that they had surfaced “the concern on the part of too many minority communities that law enforcement is not working with them and dealing with them in a fair way.”^{lxxxix}

In New York City, dozens of protests, small and large, over days and weeks, followed the Grand Jury decision. While some protests were planned in advance, many were free-form walking protests. “They generally start at a central location, mainly in Manhattan, as the workday ends. Protesters eschew pre-planned routes, calling them cattle drives. After some chanting and on-the-spot planning, they move into the streets, seeking to block traffic, disrupt commerce, and cause peaceful disturbances,” reported *The New York Times*.^{lxxx}

On Saturday, December 13, the largest of the protests took place, the Millions March NYC, under a banner shared by Black Lives Matter and the Millions March NYC Coalition. An estimated 25,000 people walked north from Washington Square Park, toward 32nd Street, then south on Broadway, ending at the NYPD Headquarters at 1 Police Plaza. After that, some protesters scattered into smaller groups and continued with informal protests. The formal protest remained peaceful and for the most part, so did the informal protests. Though demonstrators threatened vaguely to “shut it down” if they didn’t get justice, one reporter noted that they did not actually “shut down anything other than roads and bridges”—and that was a tactic, she added, that “members of the police union have used themselves.”¹³ ^{lxxxix}

That said, there were a few scattered incidents, including a brief violent clash with police on the Brooklyn Bridge, when demonstrators assaulted two officers who tried to prevent a man from throwing a garbage can onto officers standing below.^{lxxxix} Perhaps the single most controversial incident was not an act of violence, but a video posted online that showed a small group, unknown to march organizers, chanting, “What do we want? Dead cops! When do we want them? Now!” as they marched through Manhattan’s upscale Murray Hill neighborhood.^{lxxxiii} Though unsettling at the time, that chant would look even more sinister a week later, after the point-blank assassination of two NYPD police officers as they sat eating lunch in their patrol car.

The Murder of NYPD’s Wenjian Liu and Rafael Ramos

Shortly before 3 p.m. on December 20, 2014, Ismaaiyl Brinsley, 28, walked up to a patrol car, parked in a busy section of Brooklyn’s Bedford-Stuyvesant neighborhood, and shot NYPD officers Rafael Ramos and Wenjian Liu multiple times in the head and upper body with a semiautomatic handgun. He then ran into a nearby subway station and fatally shot himself. The officers were rushed to Woodhull Medical Center and pronounced dead on arrival.

As details of the case emerged, it became clear that Brinsley was a deeply troubled loner who had shot his ex-girlfriend in Baltimore earlier the same day, badly wounding her. He then stole her phone and boarded a bus for Brooklyn. Two hours before the murders, Brinsley used the stolen phone to post a picture of a gun on Instagram with the caption, “I’m putting wings on pigs today. They take 1 of ours, let’s take 2 of theirs. This may be my final post. I’m putting pigs in a blanket.” He added the hashtags: “#Shootthepolice,” “#RIPEricGarner,” and “#RIP-MikeBrown.”^{lxxxiv}

Angry Backlash against the Mayor

At the time of the shooting, relations between De Blasio and the NYPD were already tense. Many officers viewed the mayor’s reaction to the Eric Garner incident and, even more, to the Grand Jury decision, as a betrayal. Even before the December 20 shooting, the Patrolmen’s Benevolent Association had asked its members to sign a letter asking the mayor not to attend their funerals if they were killed in the line of duty. But the deaths of Ramos and Liu—killed in apparent revenge for Garner and Brown—raised the simmering anger to a roiling boil.

¹³ Thousands of off-duty police blocked traffic on the Brooklyn Bridge for nearly an hour on September 16, 1992. The demonstration had been called by the Patrolmen’s Benevolent Association to protest then-Mayor David Dinkins’ proposal to create a civilian review board to review allegations of police misconduct. (“Officers Rally and Dinkins is Their Target,” by James C. McKinley Jr., *The New York Times*, September 17, 1992, <http://www.nytimes.com/1992/09/17/nyregion/officers-rally-and-dinkins-is-their-target.html>, retrieved September 22, 2015.)

When de Blasio learned of the shooting, he decried it as a "heinous attack" and "an attack on our entire city."^{lxxxv} He and his aides headed to the Woodhull Hospital to express condolences to relatives of the two slain officers. Scores of NYPD officers were at the hospital already, in a show of grief and solidarity. "We're all in this together," de Blasio assured a cluster of officers, according to one news report. "No, we're not," one of the officers tersely replied. In a scene of palpable tension, De Blasio proceeded to walk through a crowded third floor hospital corridor. As he did so, the officers went silent and turned their backs as he passed.^{lxxxvi}

"There's blood on many hands tonight," said Patrick Lynch, president of the Patrolmen's Benevolent Association, at a news conference outside the Woodhull Hospital, after the bodies of the two officers had been taken away. "Those that incited violence on the street in the guise of protest, that tried to tear down what New York City police officers did every day. We tried to warn it must not go on, it shouldn't be tolerated. That blood on the hands starts at the steps of City Hall in the office of the mayor."^{lxxxvii}

Hundreds of police turned their backs on de Blasio again during the funerals of Ramos and Liu. In addition, the NYPD rank-and-file staged an unofficial work slow-down for about two weeks following the shooting. Arrests were down 61 percent and summonses down more than 90 percent in this period.^{lxxxviii}

All major leaders and activists associated with the demonstrations condemned the shootings in the strongest terms. One of Garner's daughters, Emerald Snipes-Garner, 22, came to the makeshift memorial for the officers in Bedford-Stuyvesant to place a candle. She had read an online tribute to Ramos from his son, and "it hit my heart," she said. "I know how it feels, in this season, to not have your father around."^{lxxxix}

Subsequent news reports made it clear that Brinsley had a history of mental illness, a criminal record, and no history of political activism over police abuse or civil rights issues. Brinsley's mother, Shakuwra Dabre, said her son had made suicide attempts since the age of 13, had been institutionalized, and had been on and off antidepressants for years. Journalists reported that he had been arrested 19 times in Georgia and Ohio, mostly for minor crimes, but once for felony gun possession.^{xc} In addition, some news sources observed that the police actions came amid contentious police contract negotiations with the city. Still, many political leaders and law enforcement officials stepped forward to argue that, by failing to stand behind the NYPD after the Garner incident, de Blasio and federal leaders—Obama and Holder—had set the stage for the Ramos and Liu murders.

"We've had four months of propaganda, starting with the President, that everybody should hate the police. I don't care how you want to describe it, that's what those protests are all about," said former Mayor Giuliani.^{xcii}

In particular, de Blasio's remarks about his son hit a nerve, said former Police Commissioner Kelly: "I think when the mayor made statements about that he had to train his son, who is biracial, to be careful when he's dealing with the police—I think that set off this latest firestorm."^{xciii}

Speaking on NBC's Meet the Press on December 28, 2014, Police Commissioner Bratton said he thought the anti-police demonstrations were fueled by "pent-up frustrations" that went well beyond anger at police. "This is about the continuing poverty rates, the continuing growing disparity between the wealthy and the poor. It's about unemployment issues. There are so many national issues that have to be addressed. It isn't just policing, as I think we all well know." But police across the country—from the rank-and-file to the top brass—felt under harsh attack he added, and he made a heartfelt plea: "See us. See the police. See why they have the anxieties and the

perceptions they have.... We have a lot of talking we're going to have to do here to understand all sides of this issue.”^{xciii}

Six days earlier, writing about the killing of the NYPD officers in the Atlantic, Ta-Nehisi Coates framed the issue differently. Police and police behavior, he argued, were a product of the democratic will of the country. This, he noted, was reflected in an annual Gallup ranking of citizen confidence in major American institutions. The police ranked third out of 15, bested by the military and small business but scoring slightly above organized religion.^{xciv} Thus, “the killing of police officers is not only the destruction of life but an attack on democracy itself” he wrote; a strong public reaction was neither surprising nor inappropriate: “When the police are brutalized by people, we are outraged because we are brutalized.” But “by the same turn,” he added, “when the police brutalize people, we are forgiving, because ultimately we are really just forgiving ourselves.”^{xcv}

To frame the problem as one of police reform, he argued, was therefore to understate the magnitude of the challenge: “When defenders of the police say that cops do the work ordinary citizens are afraid of, they are correct.”

I suspect we would like to know as little about the criminal justice system as possible. I suspect we would rather the film of Eric Garner’s killing not exist. Then we might comfort ourselves with the kind of vague unknowables that dogged the killing of Michael Brown. (“Did he have his hands up? Was he surrendering? Was he charging?”) Garner, choked to death and repeating “I can’t breathe,” trapped us.^{xcvi}

But the rush of support for the NYPD, in the wake of the killing of Liu and Ramos, was an indication of how deep-seated American identification with the police really was, Coates maintained. Activists had hoped that the outpouring of concern over the Garner killing signaled a shift in public opinion, but Coates was far less optimistic: “[T]o challenge the police is to challenge the American people who send them.”^{xcvii}

Exhibit 1. Percentage change in NYC's violent crime and property crime by mayoral term¹⁴

	<i>Violent Crime</i>	<i>Property Crime</i>
<i>Mayor Dinkins, 1990-1993</i>	-8%	-13%
<i>Mayor Giuliani, 1994-1997</i>	-36%	-28%
<i>Mayor Giuliani, 1998-2001</i>	-22%	-22%
<i>Mayor Bloomberg, 2002-2005</i>	-12%	-11%
<i>Mayor Bloomberg, 2006-2009</i>	-12%	-7%
<i>Mayor Bloomberg, 2010-2013</i>	+2%	-5%

Exhibit 2. Reported incidents in seven major crime categories in NYC in 1990 & 2013¹⁵

	<i>1990</i>	<i>2013</i>	<i>Percent Drop</i>
<i>Murder</i>	2,605	648	-75%
<i>Forcible rape</i>	5,368	2,577	-52%
<i>Robbery</i>	112,380	27,241	-76%
<i>Aggravated assault</i>	92,105	46,130	-50%
<i>Burglary</i>	208,813	56,442	-73%
<i>Theft</i>	536,012	286,674	-47%
<i>Vehicle theft</i>	187,591	15,482	-92%

¹⁴ Four major crimes were included in the calculation for violent crime (murder, forcible rape, robbery, and aggravated assault). Three were included in the calculation for property crime (burglary, theft [excluding vehicle theft], and vehicle theft). Percent calculations by HKS based on data from DisasterCenter.com, from FBI Uniform Crime Reports, <http://www.disastercenter.com/crime/nycrime.htm>, retrieved August 17, 2015.

¹⁵ DisasterCenter.com, from FBI Uniform Crime Reports, <http://www.disastercenter.com/crime/nycrime.htm>, retrieved August 17, 2015.

Exhibit 2. The Guiding Principles of Black Lives Matter^{xcviii}

Diversity

We are committed to acknowledging, respecting, and celebrating difference(s) and commonalities.

Restorative Justice

We are committed to collectively, lovingly and courageously working vigorously for freedom and justice for Black people and, by extension, all people. As we forge our path, we intentionally build and nurture a beloved community that is bonded together through a beautiful struggle that is restorative not depleting.

Unapologetically Black

We are unapologetically Black in our positioning. In affirming that Black Lives Matter, we need not qualify our position. To love and desire freedom and justice for ourselves is a necessary prerequisite for wanting the same for others.

Globalism

We see ourselves as part of a global Black family and we are aware of the different ways we are impacted or privileged as Black folk who exist in different parts of the world.

Black Women

We are committed to building a Black women affirming space free from sexism, misogyny and male-centeredness.

Collective Value

We are guided by the fact all Black Lives Matter, regardless of actual or perceived sexual identity, gender identity, gender expression, economic status, ability, disability, religious beliefs or disbeliefs, immigration status or location.

Transgender Affirming

We are committed to embracing and making space for trans brothers and sisters to participate and lead. We are committed to being self-reflexive and doing the work required to dismantle cis-gender privilege and uplift Black trans folk, especially Black trans women who continue to be disproportionately impacted by trans-antagonistic violence.

Black Villages

We are committed to disrupting the Western-prescribed nuclear family structure requirement by supporting each other as extended families and “villages” that collectively care for one another and especially “our” children, to the degree that mothers, parents, and children are comfortable.

Empathy

We are committed to practicing empathy; we engage comrades with the intent to learn about and connect with

their contexts.

Black Families

We are committed to making our spaces family-friendly and enable parents to fully participate with their children. We are committed to dismantling the patriarchal practice that requires mothers to work “double shifts” that require them to mother in private even as they participate in justice work.

Loving Engagement

We are committed to embodying and practicing justice, liberation, and peace in our engagements with one another.

Queer Affirming

We are committed to fostering a queer-affirming network. When we gather, we do so with the intention of freeing ourselves from the tight grip of heteronormative thinking or, rather, the belief that all in the world are heterosexual unless s/he or they disclose otherwise.

Intergenerational

We are committed to fostering an intergenerational and communal network free from ageism. We believe that all people, regardless of age, show up with capacity to lead and learn.

Exhibit 3. Consolidated Summary of Campaign Zero Solutions¹⁶

End Broken Windows Policing

- Decriminalize, or de-prioritize enforcement of activities that do not threaten public safety, such as public consumption of alcohol, marijuana possession, disorderly conduct, trespassing, loitering, disturbing the police, spitting.
- End police profiling as the basis for making “stop-and-frisk” stops.
- Establish new approaches to mental health crises that involve mental health professionals, not heavy-handed police interventions.

Community Oversight

- Establish effective civilian oversight structures, including both a Police Commission with policy-making and hiring influence, and a Civilian Complaints Office, with authority to investigate citizen complaints and the ability to appeal decisions to the Police Commission.
- Remove barriers to reporting police misconduct by requiring officers to give civilians their name, badge number, reason for the stop and a card with instructions for filing a complaint to the civilian oversight structure.

Limit Use of Force

- Authorize deadly force only when such force is unavoidable to protect against an imminent threat to the life of the officer or another person.
- Require police reports of all police killings or serious injuries of civilians.
- Revise use-of-force policies and encourage alternatives such as de-escalation strategies, the use of less-lethal weapons; ban use of force for talking-back or running away.
- Prohibit police officers from dangerous moving vehicle actions such as shooting at moving vehicles, moving in front of vehicles, or engaging in a high-speed chase except where the individual is likely to commit a violent felony.
- Monitor police use of force and intervene when officers show a pattern of using excessive force.

Independent Investigations and Prosecutions

- Allow Department of Justice civil rights investigations of police officers without requiring that the officer acted “willfully”.
- Use federal funds to encourage independent investigations of police misconduct.

¹⁶ For full text/exact wording, see the Campaign Zero website, <http://www.joincampaignzero.org/solutions/#solutionsoverview>, retrieved October 5, 2015.

- Establish a Special Prosecutor’s Office at the state level for cases of police violence.
- Require independent investigations whenever police kill or seriously injure civilians.

Community Representation

- Increase the number of women and people of color who are police officers, in proportion to the community they serve.
- Seek community feedback on their experiences and perceptions of the police.

Body Cams/Film the Police

- Use body cameras, in addition to dashboard cameras, unless subjects request to be kept anonymous, and make footage available to subjects or their families.
- Protect privacy by preventing public release of the footage unless it contains police use of force, weapon discharge, or a death.
- Ban police officers from taking cell phones or other recording devices without a person's consent or warrant.

Training

- Require training, including scenario-based training, on a set of topics including implicit bias, relationship-based policing, crisis intervention, de-escalation, and appropriate engagement with youth, LGBTQ individuals, non-native English speakers, different religious affiliations, and those who are “differently abled.”
- Require current and prospective officers to undergo mandatory testing for implicit racial bias and develop a policy for factoring level of bias into hiring and deployment decisions.

End For-Profit Policing

- Ban the use of ticket and arrest quotas to evaluate police performance.
- Limit fines and fees for low-income people.
- Do not allow municipalities to rely on fines and fees for more than 10 percent of annual revenues.
- Prohibit police from seizing property of civilians unless they are convicted of a crime and the state establishes by clear and convincing evidence that the property is subject to forfeiture.

Demilitarization

- End the supply of federal military weaponry to local police departments under the 1033 program.
- Restrict police departments from purchasing or deploying military equipment.

- Restrict police departments from using SWAT teams or no-knock raids unless there is an emergency situation or imminent threat to life.

Fair Police Union Contracts

- Remove contractual barriers to misconduct investigations.
- Remove contractual provisions that allow officers to destroy records of past misconduct or prevent their release to the public under a Freedom of Information Act request.
- Remove contract provisions that allow police paid leave or desk-duty during an investigation of a police killing or serious injury, or after being charged with a felony offense.

Appendix 1. The Creation of Racialized Urban “Ghetto” Neighborhoods¹⁷

There has long been debate about the factors that have given rise to the dismal conditions and violent crime in poor, isolated, racially segregated neighborhoods in cities all across the United States. John A. Powell, director of the Institute for the Study of Race and Ethnicity in the Americas at Ohio State University, talked in a 2003 interview of a prevalent “language of personal responsibility,” that he found problematic because it “suggests, really, that there’s no institutional or structural responsibility, there’s no collective responsibility. If you’re not doing well, it’s not because of anything we in society have done. It’s not because of our history, our legacy of Jim Crow, segregation, exploitation and subordination; it’s all personal.”^{xcix}

Recent scholarship has reasserted the pivotal and damaging role, in particular, of government housing and urban renewal policies in the creation of race-based ghettos in the latter half of the 20th century. Such policies comprise one of the more recent chapters in a long, grim national history that, of course, began with 250 years of chattel slavery, finally abolished by U.S. Constitutional amendment in 1865, but swiftly followed by a new litany of horrors. As emancipation took effect, many white Americans regarded the prospect of living as equals with four million freed slaves to be threatening, especially in the agrarian South where whites were outnumbered by African Americans in several states. The Jim Crow era—notorious for subjecting freed slaves to debt peonage, a raft of segregation laws, and white supremacist terror under vigilante organizations like the Ku Klux Klan—quickly took hold.

To escape these predations and to seek better jobs and a pathway into the middle class, some six million African Americans moved to northern cities in successive waves, primarily in the middle decades of the 20th century. It was in response to the “Great Migration” that federal and local governments enacted laws and policies—most in place from the mid-1930s to the late 1960s—that effectively funneled African Americans into overcrowded, isolated, underserved urban neighborhoods. “So much of the work of Jim Crow laws was maintaining social distance between blacks and whites—it was not necessarily physical distance before the turn of the century, especially in the South,” said Powell. But as a result of mid-century housing and urban development policies, “that social distance became reinscribed as spatial distance between blacks and whites.”^c

Mortgage discrimination. In the 1930s, homeownership typically required the down payment of 20 to 50 percent of the price of house, with the remaining loan paid off in 5 to 10 years. To combat the Depression era collapse of the housing market, the federal government created the Federal Housing Administration, which encouraged banks to provide loans to home buyers by guaranteeing 90 percent of the loan, effectively reducing the home buyer’s down payment to 10 percent. In addition, the government bought the loans from lenders, which allowed for the creation of 20- and 30-year mortgages. The program created an opportunity for home ownership, wealth accumulation, and entry into the middle class for many white Americans. Between 1930 and 1960, the rate of home ownership in the United States increased from 30 to 60 percent.^{ci} It also created enormous incentives for white city residents to move out of the cities and into white-only suburbs—and millions did so. “All of a sudden, it became cheaper to buy a home in the suburbs than to rent a place in the city,” said Powell.^{cii} But the new home loans and the new suburbs were effectively unavailable to African Americans. Why? Because the federal government stipulated that the mortgages could only be offered in

¹⁷ For a vivid, unsparing portrait of the United States’ racial history, see “The Case for Reparations,” by Ta-Nehisi Coates, *The Atlantic*, June 2014, <http://www.theatlantic.com/magazine/archive/2014/06/the-case-for-reparations/361631/>, retrieved November 1, 2015. It received the 2014 George Polk Award for Commentary.

“racially homogenous” neighborhoods. In fact, some white home buyers were forced to accept racially restrictive covenants in their deeds, promising never to sell their homes to African Americans.

The FHA policy meant that blacks could not get federally-backed mortgages in the newly-developing white suburbs and that no one—black or white—could get federally-backed mortgages in racially mixed neighborhoods.¹⁸ The only places available for African Americans to buy homes, therefore, were black urban neighborhoods—but these neighborhoods were almost universally declared “too risky” for federally-backed home loans. A famous 1935 federal study created “residential security” maps in 239 cities, which consistently disallowed mortgages in minority neighborhoods—a practice known as redlining because the taboo neighborhoods were colored red on the map.

Federally-guaranteed loans to mass-production builders in the suburbs. Consistent with the mortgage policies, the FHA and Veterans Administration actively encouraged construction of large scale working class housing developments in suburban neighborhoods—like Levittown in Long Island—on the condition that no sales or re-sales of the units be made to African Americans.

Racially-segregated public housing in the cities. The federal government also funded large-scale, segregated public housing projects, built almost exclusively in black urban neighborhoods.

Urban renewal & highway construction. Under urban renewal, old but often vibrant city neighborhoods were torn down to make way for new urban development projects, especially in the 1950s and 1960s. In addition, the federal government encouraged highway construction to allow suburban commuters an easy way to get in and out of the city. These highway projects eradicated some neighborhoods and isolated others. Taken together, the projects disproportionately destroyed black and racially mixed neighborhoods and pushed African Americans into more isolated parts of the city. According to Richard Rothstein, a research associate at the Economic Policy Institute, “[I]n most cases, housing quality for those whose homes were razed was diminished by making public housing high-rises or over-crowded ghettos the only relocation option.”^{ciii}

For African Americans who wanted to buy a home and could afford to do so, the only option was to buy in a black urban neighborhood. But, locked out of the market for legitimate bank mortgages, African Americans had to buy “on contract.” Under a contract deal, the price of a home was artificially inflated, and the home buyer acquired no equity in the property until the loan was entirely paid off. Missing a single payment left the buyer vulnerable to losing the entire investment and being evicted from the property. But even the African Americans who did manage to pass through this gauntlet and buy property in an inner city neighborhood found that their property did not appreciate in value as did homes in the white suburbs.

Thus, while housing discrimination was finally outlawed under the 1968 federal Fair Housing Act,¹⁹ a large wealth gap between blacks and whites had been created in the interim. “In consequence, most black families, who in the mid-twentieth century could have joined their white peers in the suburbs, can no longer afford to do so,” wrote Rothstein in 2014.^{civ}

Deteriorating conditions in the inner city. As whites decamped for the suburbs, the property values, tax base,

¹⁸ To a lesser extent, the FHA also limited the ability of Jews, Latinos, and Asian Americans to secure mortgages.

¹⁹ Enforcement of the act remained a chronic concern for civil rights activists, however.

and political clout of the inner city neighborhoods declined, leading to reduced municipal services in these areas. Thus, overcrowded, segregated neighborhoods were additionally burdened by less frequent garbage collection, poorer quality schools, inadequate public transportation, insufficient street lighting, limited police and fire security, and so forth. In addition, unpleasant and unhealthy facilities, like garbage dumps, sewage treatment plants, incinerators, and hazardous waste disposal sites were increasingly “dumped” in minority neighborhoods.^{cv}

De-industrialization. Beginning in the 1970s, urban industrial jobs, and the support jobs that had grown up around them, increasingly left the cities, in some cases to relocate to the suburbs and in others, to relocate overseas. Between 1968 and 1987, New York City lost 58 percent of its manufacturing jobs.^{cvi} After enduring much discrimination in the manufacturing sector in the early part of the 20th century, many black workers had finally been hired to such jobs during the labor shortages that followed World War II. By the late 1960s, 70 percent of urban blacks held blue collar jobs, and more than half of these were in goods-producing industries. The departure of industrial work from the cities thus affected blacks and their neighborhoods disproportionately. Isolated from other communities, lacking the education and skills necessary to compete for jobs in the high skilled service economy, and lacking the transportation needed to get now-distant jobs, unemployment levels grew. As disposable income decreased, it became increasingly difficult for the neighborhoods to support basic institutions—stores, banks, restaurants, gas stations, health clinics, even churches—leading to a further decline in social cohesion.^{cvi}

Departure of middle/working class blacks. As conditions worsened, those who could get out did so. The Fair Housing Act had paved the way for younger, better-educated black residents to escape the inner city economic collapse, and they did so in significant numbers, while those left behind faced even greater isolation and deeper concentrations of poverty.

Appendix 2. Excerpt from National Public Radio's *Fresh Air* Interview with Ta-Nehisi Coates^{cvi}

In a July 2015 interview on NPR's *Fresh Air*, host Terry Gross asked Ta-Nehisi Coates about how he saw the police when he was a young teenager growing up in West Baltimore:

Coates:	They were another force. I don't want to be too cynical here. I am an American, so I did understand them as representing some aspect of the state that I was part of. But at the same time, there was another part of me that recognized them as another element within the community, with no real moral difference from the crews and the gangs—the folks who dispensed violence throughout the neighborhood. The police were another force to be negotiated that could dispense violence. I want to be really clear about that because when you're on the outside it's very easy to label a quote, unquote, "gang" as criminal. But, you know, when you live in the neighborhood, these are people who you see, who you talk to. Everything does not always come to violence. You can negotiate things. There are ways of dealing with folks. And the police were, in that respect, very much the same way. The police have certain rules for how you negotiate them, too, if you want to avoid violence.
Gross:	Did you ever see the police as possibly protecting you from violent forces within your own neighborhood?
Coates:	Yes, I did, but I also saw the crews the same way, you know? That's the interesting thing. The question for me was when do you call what. So if somebody breaks into your house, you would call the police. But by the same token if you happened to be walking somewhere and five people jumped on you and did some degree of violence, you probably would not call the police. You might call some of your cousins or you might call some of your friends. So it really depended on what the case actually was.

Endnotes

- ⁱ David Crary, "Police killings of unarmed black men voted top news story of 2014," *Huffington Post*, December 22, 2014, http://www.huffingtonpost.com/2014/12/22/top-news-story-2014-police-killing-unarmed-blacks_n_6365260.html, retrieved August 3, 2015.
- ⁱⁱ Ta-Nehisi Coates, *Between the World and Me*, Spiegel & Grau, New York, 2015, p. 9.
- ⁱⁱⁱ William J. Bratton and George L. Kelling, "Why we need Broken Windows policing," *City Journal*, Manhattan Institute, Winter 2015.
- ^{iv} "Safe streets, safe city," editorial, *New York Daily News*, January 8, 2009, <http://www.nydailynews.com/opinion/safe-streets-safe-city-article-1.358700>, retrieved September 8, 2015.
- ^v DisasterCenter.com, from FBI Uniform Crime Reports, <http://www.disastercenter.com/crime/nycrime.htm>, retrieved August 17, 2015.
- ^{vi} William J. Bratton and George L. Kelling, "Why we need Broken Windows policing," *City Journal*, Manhattan Institute, Winter 2015.
- ^{vii} Marc Parry, "Defending their homes," *The Chronicle of Higher Education*, August 3, 2015, <http://chronicle.com/article/Black-Silent-Majority/231983/>, retrieved October 2, 2015.
- ^{viii} Jesse Singal, "The black activists who helped launch the drug war," *New York Magazine*, September 27, 2015, <http://nymag.com/daily/intelligencer/2015/09/black-activists-helped-launch-the-drug-war.html>, retrieved October 2, 2015.
- ^{ix} Franklin Zimring, "How New York beat crime," *Scientific American*, August 2011.
- ^x Percent calculations by HKS based on data from DisasterCenter.com, from FBI Uniform Crime Reports, <http://www.disastercenter.com/crime/nycrime.htm>, retrieved August 17, 2015.
- ^{xi} Franklin Zimring, "How New York beat crime," *Scientific American*, August 2011.
- ^{xii} Franklin Zimring, "How New York beat crime," *Scientific American*, August 2011.
- ^{xiii} Franklin Zimring, "How New York beat crime," *Scientific American*, August 2011.
- ^{xiv} Michael Greenberg, "'Broken Windows' and the New York police," *New York Review of Books*, November 6, 2014, <http://www.nybooks.com/articles/archives/2014/nov/06/broken-windows-and-new-york-police/>, retrieved September 15, 2015.
- ^{xv} "What really cleaned up New York/The city's extraordinary, continuing decrease in crime had little to do with Giuliani. An expert explains why," interview of Franklin Zimring by Thomas Rogers, *Salon*, November 19, 2011, http://www.salon.com/2011/11/19/what_really_cleaned_up_new_york/.
- ^{xvi} James Q. Wilson and George L. Kelling, "Broken Windows," *Atlantic Monthly*, March 1982, <http://www.theatlantic.com/magazine/archive/1982/03/broken-windows/304465/>, retrieved September 8, 2015.
- ^{xvii} HKS calculation based on figures in *Broken Windows and Quality of Life Policing*, by William J. Bratton, April 2015, http://www.nyc.gov/html/nypd/downloads/pdf/analysis_and_planning/qol.pdf, retrieved September 24, 2015.
- ^{xviii} William J. Bratton and George L. Kelling, "Why we need Broken Windows policing," *City Journal*, Manhattan Institute, Winter 2015.
- ^{xix} Ernie Naspretto, "The real history of stop-and-frisk," *New York Daily News*, June 3, 2012, <http://www.nydailynews.com/opinion/real-history-stop-and-frisk-article-1.1088494>, retrieved September 8, 2015.
- ^{xx} "Stop-and-Frisk Data," New York Civil Liberties Union, <http://www.nyclu.org/content/stop-and-frisk-data>, retrieved October 7, 2015.
- ^{xxi} William J. Bratton, *Broken Windows and Quality of Life Policing*, April 2015, http://www.nyc.gov/html/nypd/downloads/pdf/analysis_and_planning/qol.pdf, retrieved September 24, 2015.
- ^{xxii} "What really cleaned up New York/The city's extraordinary, continuing decrease in crime had little to do with Giuliani. An expert explains why," interview of Franklin Zimring by Thomas Rogers, *Salon*, November 19, 2011, http://www.salon.com/2011/11/19/what_really_cleaned_up_new_york/.
- ^{xxiii} Peter Moskos, *Cop in the Hood: My Year Policing Baltimore's Eastern District*, Princeton University Press, 2008, p. 71.
- ^{xxiv} Ta-Nehisi Coates, *Between the World and Me*, Spiegel & Grau, New York, 2015, p. , 22, 29.
- ^{xxv} Joe Poss and Henry R. Schlesinger, *Brooklyn Bounce: The True-Life Adventures of a Good Cop in a Bad Precinct*, Avon Books, 1994. Excerpted in *NYPD: Stories of Survival from the World's Toughest Beat*, Edited by Clint Willis, Adrenaline, Avalon Publishing Group, New York, 2002, p. 4.
- ^{xxvi} Joe Poss and Henry R. Schlesinger, *Brooklyn Bounce: The True-Life Adventures of a Good Cop in a Bad Precinct*, Avon Books, 1994. Excerpted in *NYPD: Stories of Survival from the World's Toughest Beat*, Edited by Clint Willis, Adrenaline, Avalon Publishing Group, New York, 2002, p. 7.
- ^{xxvii} Peter Moskos, *Cop in the Hood: My Year Policing Baltimore's Eastern District*, Princeton University Press, 2008, p.116-117.
- ^{xxviii} Peter Moskos, *Cop in the Hood: My Year Policing Baltimore's Eastern District*, Princeton University Press, 2008, p. 117.
- ^{xxix} Joe Poss and Henry R. Schlesinger, *Brooklyn Bounce: The True-Life Adventures of a Good Cop in a Bad Precinct*, Avon Books, 1994. Excerpted in *NYPD: Stories of Survival from the World's Toughest Beat*, Edited by Clint Willis, Adrenaline, Avalon

Publishing Group, New York, 2002, p. 5.

^{xxx} Peter Moskos, *Cop in the Hood: My Year Policing Baltimore's Eastern District*, Princeton University Press, 2008, p. 121-123.

^{xxxj} Peter Moskos, *Cop in the Hood: My Year Policing Baltimore's Eastern District*, Princeton University Press, 2008, p. 206.

^{xxxii} Peter Moskos, *Cop in the Hood: My Year Policing Baltimore's Eastern District*, Princeton University Press, 2008, p. 115.

^{xxxiii} "Stop-and-Frisk Data," New York Civil Liberties Union, <http://www.nyclu.org/content/stop-and-frisk-data>, retrieved September 19, 2015.

^{xxxiv} Peter Moskos, *Cop in the Hood: My Year Policing Baltimore's Eastern District*, Princeton University Press, 2008, p. 205.

^{xxxv} "What really cleaned up New York/The city's extraordinary, continuing decrease in crime had little to do with Giuliani. An expert explains why," interview of Franklin Zimring by Thomas Rogers, *Salon*, November 19, 2011, http://www.salon.com/2011/11/19/what_really_cleaned_up_new_york/.

^{xxxvi} *Cop in the Hood: My Year Policing Baltimore's Eastern District*, by Peter Moskos, Princeton University Press, 2008, p. 205.

^{xxxvii} Matthew Orr, "Stop-and-frisk in Brownsville, Brooklyn," *New York Times Video*, July 12, 2010, <http://www.nytimes.com/video/nyregion/1247468422062/stop-and-frisk-in-brownsville-brooklyn.html>, retrieved October 4, 2015.

^{xxxviii} Mark Winston Griffith, "Ending stop-and-frisk abuses will help rebuild neighborhood trust in the NYPC," *New York Daily News*, April 1, 2014, <http://www.nydailynews.com/new-york/guest-stop-and-frisk-abuses-feel-powerless-neighborhoods-article-1.1303990>, retrieved October 4, 2015.

^{xxxix} Stephen Farrell and Adam Kaufmann, "Voter voices: Stop-and-frisk policing," *New York Times Video*, September 9, 2013, <http://www.nytimes.com/video/nyregion/100000002419744/voter-voices-stop-and-frisk-policing.html>, retrieved October 4, 2015.

^{xl} New York Civil Liberties Union data, as cited in "New York City Bar Association Report on the NYPD's Stop-and-Frisk Policy," May 2013, <http://www2.nycbar.org/pdf/report/uploads/20072495-StopFriskReport.pdf>, retrieved September 19, 2015.

^{xli} Julie Dressner and Edward Martinez, "The Scars of Stop-and-Frisk," June 13, 2012, from *Op-Docs*, Season 1, <http://www.nytimes.com/video/opinion/100000001601732/the-scars-of-stop-and-frisk.html>, retrieved September 15, 2015.

^{xlii} Julie Dressner and Edward Martinez, "The Scars of Stop-and-Frisk," June 13, 2012, from *Op-Docs*, Season 1, <http://www.nytimes.com/video/opinion/100000001601732/the-scars-of-stop-and-frisk.html>, retrieved September 15, 2015.

^{xliii} Joseph Goldstein, "Judge Rejects New York's Stop-and-Frisk Policy," *The New York Times*, August 12, 2013, <http://www.nytimes.com/2013/08/13/nyregion/stop-and-frisk-practice-violated-rights-judge-rules.html>, retrieved September 19, 2015.

^{xliv} Julie Dressner and Edward Martinez, "The Scars of Stop-and-Frisk," June 13, 2012, from *Op-Docs*, Season 1, <http://www.nytimes.com/video/opinion/100000001601732/the-scars-of-stop-and-frisk.html>, retrieved September 15, 2015.

^{xlv} "New York City Voters Want Their Broken Windows Fixed, Quinnipiac University Poll Finds; 'No Excuse' For Garner Death, Voters Say Almost 3-1," Quinnipiac University, <http://www.quinnipiac.edu/news-and-events/quinnipiac-university-poll/new-york-city/release-detail?ReleaseID=2075>, retrieved October 7, 2015.

^{xlvi} "New York: Curbing Marijuana Arrests," Human Rights Watch, November 11, 2014, <https://www.hrw.org/news/2014/11/11/new-york-curbing-marijuana-arrests>, retrieved September 18, 2015.

^{xlvii} Michael Greenberg, "'Broken Windows' and the New York police," *New York Review of Books*, November 6, 2014, <http://www.nybooks.com/articles/archives/2014/nov/06/broken-windows-and-new-york-police/>, retrieved September 15, 2015.

^{xlviii} Michael Greenberg, "'Broken Windows' and the New York police," *New York Review of Books*, November 6, 2014, <http://www.nybooks.com/articles/archives/2014/nov/06/broken-windows-and-new-york-police/>, retrieved September 15, 2015.

^{xlix} William J. Bratton, *Broken Windows and Quality of Life Policing*, April 2015, http://www.nyc.gov/html/nypd/downloads/pdf/analysis_and_planning/qol.pdf, retrieved September 24, 2015.

ⁱ Jamie Schram and Sophia Rosenbaum, "Rookie cops often assigned to dangerous 'vertical patrols,'" *New York Post*, November 22, 2014, <http://nypost.com/2014/11/22/rookie-cops-often-assigned-to-dangerous-vertical-patrols/>, retrieved October 4, 2015.

ⁱⁱ "Class action lawsuit challenges NYPD patrols of private apartment buildings," New York Civil Liberties Union website, March 28, 2012, <http://www.nyclu.org/news/class-action-lawsuit-challenges-nypd-patrols-of-private-apartment-buildings>, retrieved October 4, 2015.

ⁱⁱⁱ "New Yorkers weigh safety and harassment in 'Stop-and-Frisk' police policy," *PBS Newshour*, August 13, 2013, http://www.pbs.org/newshour/bb/nation-july-dec13-stopfrisk_08-13/, retrieved October 13, 2015.

ⁱⁱⁱⁱ Testimony of former NYPD Detective Edward Conlon before the House Judiciary Committee's Subcommittee on Crime, Terrorism, and Homeland Security, November 4, 2011.

^{liv} Raymond Kelly, "The NYPD vs. Minorities? No Way," *New York Daily News*, May 21, 2012, <http://www.nydailynews.com/opinion/nypd-minorities-no-article-1.1080920>, retrieved September 19, 2015.

^{iv} Raymond Kelly, "The NYPD vs. Minorities? No Way," *New York Daily News*, May 21, 2012,

<http://www.nydailynews.com/opinion/nypd-minorities-no-article-1.1080920>, retrieved September 19, 2015.

^{lvi} Jed S. Rakoff, "Mass Incarceration: the Silence of the Judges," *New York Review of Books*, May 21, 2015.

^{lvii} Ta-Nehisi Coates, *Between the World and Me*, Spiegel & Grau, New York, 2015, p. 111.

^{lviii} Wendy Ruderman, "Rude or polite, city's officers leave raw feelings in stops," *The New York Times*, June 26, 2012, <http://www.nytimes.com/2012/06/27/nyregion/new-york-police-leave-raw-feelings-in-stops.html>, retrieved October 7, 2015.

^{lix} Al Baker, J. David Goodman and Benjamin Mueller, "Beyond the choke hold: the path to Eric Garner's death," *The New York Times*, June 13, 2015, http://www.nytimes.com/2015/06/14/nyregion/eric-garner-police-choke-hold-staten-island.html?_r=0

^{lx} Al Baker, J. David Goodman and Benjamin Mueller, "Beyond the choke hold: the path to Eric Garner's death," *The New York Times*, June 13, 2015, http://www.nytimes.com/2015/06/14/nyregion/eric-garner-police-choke-hold-staten-island.html?_r=0

^{lxi} Jon Campbell, "Smuggled, untaxed cigarettes are everywhere in New York City," *Village Voice*, April 7, 2015, <http://www.villagevoice.com/news/smuggled-untaxed-cigarettes-are-everywhere-in-new-york-city-6717621>, retrieved October 7, 2015.

^{lxii} Al Baker, J. David Goodman and Benjamin Mueller, "Beyond the choke hold: the path to Eric Garner's death," *The New York Times*, June 13, 2015, http://www.nytimes.com/2015/06/14/nyregion/eric-garner-police-choke-hold-staten-island.html?_r=0

^{lxiii} "I can't breathe": Eric Garner put in choke hold by NYPD officer-video," *The Guardian*, December 4, 2014, <http://www.theguardian.com/us-news/video/2014/dec/04/i-cant-breathe-eric-garner-choke-hold-death-video>, retrieved October 7, 2015.

^{lxiv} "Unseen video of Eric Garner death-over 7 minutes handcuffed, not breathing NYPD choke hold AFTERMATH," YouTube, July 19, 2014, https://www.youtube.com/watch?v=vT66U_Ftdng, retrieved October 7, 2015.

^{lxv} "It wasn't just the choke hold," *New York Times* editorial, December 4, 2014, http://www.nytimes.com/2014/12/05/opinion/eric-garner-daniel-pantaleo-and-lethal-police-tactics.html?_r=0, retrieved July 24, 2015.

^{lxvi} Annie Karni, Rocco Parascandola, Larry McShane, "Two cops pulled off streets, Staten Island DA looking into death of dad of six after NYPD cop put him in choke hold during sidewalk takedown," *New York Daily News*, July 19, 2014, <http://www.nydailynews.com/new-york/nyc-crime/staten-island-da-man-death-nypd-choke-hold-article-1.1871946>, retrieved October 7, 2015.

^{lxvii} Jonathan Allen, "Preachers rail at police in funeral for NYC man who died in custody," *Reuters*, <http://www.reuters.com/article/2014/07/24/us-usa-new-york-choke-hold-funeral-idUSKBN0FS2G920140724>, retrieved October 8, 2015.

^{lxviii} Jonathan Allen, "NYC police union denies choke hold used in man's death," August 5, 2014, *Reuters*, <http://mobile.reuters.com/article/idUSKBN0G51PB20140805>, retrieved October 8, 2015. Ellen Wulffhorst, "New York mayor faces conundrum over police choke hold protests," *Reuters*, December 4, 2014, <http://mobile.reuters.com/article/idUSKCN0J12KJ20141204>, retrieved October 8, 2015.

^{lxix} J. David Goodman, "New York police officers to start using body cameras in a pilot program," *The New York Times*, September 4, 2014, <http://www.nytimes.com/2014/09/05/nyregion/new-york-police-officers-to-begin-wearing-body-cameras-in-pilot-program.html>, retrieved October 8, 2015.

^{lxx} J. David Goodman, "Bratton outlines police training overhaul," *The New York Times*, September 8, 2014, <http://www.nytimes.com/2014/09/09/nyregion/bratton-outlines-overhaul-in-training-for-new-york-city-police-officers.html>, retrieved October 8, 2015.

^{lxxi} Joseph Goldstein, "Marijuana may mean ticket, not arrest, in New York City," *The New York Times*, November 9, 2014, <http://www.nytimes.com/2014/11/10/nyregion/in-shift-police-dept-to-stop-low-level-marijuana-arrests-officials-say.html>, retrieved October 8, 2015.

^{lxxii} Elizabeth Day, "#BlackLivesMatter: the birth of a new civil rights movement," July 19, 2015, *The Guardian*, <http://www.theguardian.com/world/2015/jul/19/blacklivesmatter-birth-civil-rights-movement>, retrieved October 5, 2015.

^{lxxiii} Brittney Cooper, "11 major misconceptions about the Black Lives Matter movement," *Cosmopolitan*, September 8, 2015, <http://www.cosmopolitan.com/politics/a45930/misconceptions-black-lives-matter-movement/>, retrieved October 5, 2015.

^{lxxiv} Michael Greenberg, "'Broken Windows' and the New York police," *New York Review of Books*, November 6, 2014, <http://www.nybooks.com/articles/archives/2014/nov/06/broken-windows-and-new-york-police/>, retrieved September 15, 2015.

^{lxxv} Michael Wilson, "Officer's errant shot kills unarmed Brooklyn man," *The New York Times*, November 21, 2014, http://www.nytimes.com/2014/11/22/nyregion/new-york-police-officer-fatally-shoots-brooklyn-man.html?referrer=&_r=0, retrieved October 4, 2015.

^{lxxvi} Meghan Keneally, "Police Officer Says He Feels 'Very Bad' about Eric Garner Choke Hold Death," December 3, 2014, *ABC News*, <http://abcnews.go.com/US/police-officer-feels-bad-eric-garner-choke-hold/story?id=27342916>, retrieved September 22, 2014.

^{lxxvii} Michael M. Grynbaum & Nikita Stewart, "De Blasio Reacts as Mayor and a Father," *The New York Times*, December 3, 2014, <http://www.nytimes.com/2014/12/04/nyregion/de-blasio-reacts-as-mayor-and-a-father-to-choke-hold-case-decision.html>,

retrieved September 22, 2015.

^{lxxxviii} Joseph P. Williams, "New York Police Killings: the Politics of Race and Police Use of Force," *U.S. News & World Report*, December 22, 2014, <http://www.usnews.com/news/articles/2014/12/22/the-politics-of-race-and-police-use-of-force>

^{lxxxix} "President Obama Delivers a Statement on the Grand Jury Decision in the Death of Eric Garner," White House blog, December 3, 2014, <https://www.whitehouse.gov/blog/2014/12/03/president-obama-delivers-statement-grand-jury-decision-death-eric-garner>, retrieved September 22, 2015.

^{lxxx} Marc Santora and Al Baker, "In Unpredictable New York Protests, Organized Criticism of Police," *The New York Times*, December 5, 2014, <http://www.nytimes.com/2014/12/06/nyregion/in-unpredictable-new-york-protests-organized-criticism-of-police.html>, retrieved September 22, 2015.

^{lxxxix} Joy-Ann Reid, "The Truth about the Dead Cops Chant," MSNBC, December 23, 2014, <http://www.msnbc.com/the-reid-report/the-truth-about-the-dead-cops-chant>, retrieved September 22, 2015.

^{lxxxii} Thomas Tracy, Tanisia Morris, Chauncey Alcorn, and Rich Schapiro, "Two NYPD cops assaulted as Manhattan march over Eric Garner case turns ugly," *New York Daily News*, December 14, 2014, <http://www.nydailynews.com/new-york/nyc-marchers-call-daniel-pantaleo-fired-nypd-article-1.2044465>, retrieved October 6, 2015.

^{lxxxiii} Tom DiLello, "NYC protesters chant for dead cops," YouTube, <https://www.youtube.com/watch?v=dj4ARsrxZh8>, retrieved October 6, 2015.

^{lxxxiv} Paul Farrell, "Ismaaiyl Brinsley: 5 Fast Facts You Need to Know," *Heavy*, December 20, 2014, <http://heavy.com/news/2014/12/ismaiyl-brinsley-nypd-brooklyn-bed-stuy-shooting-suspect/>, retrieved September 22, 2015.

^{lxxxv} Jeremy Diamond, "Blame piles on NYC mayor for cop shooting," CNN, December 21, 2014, <http://edition.cnn.com/2014/12/21/politics/gop-pols-blame-nyc-mayor-for-cop-shooting/>, retrieved September 23, 2015.

^{lxxxvi} Shawn Cohen, Kirstan Conley, and Amber Jamieson, "Police turn their back on de Blasio," *New York Post*, December 20, 2014, <http://nypost.com/2014/12/20/police-turn-their-back-on-de-blasio/>, retrieved September 23, 2015.

^{lxxxvii} Darran Simon and Ted Phillips, "Police union links cop killings to protests; NYPD critics condemn shootings," *Newsday*, December 21, 2014, <http://www.newsday.com/news/new-york/pba-blood-on-many-hands-including-bill-de-blasio-s-protestors-1.9735355>, retrieved September 23, 2014.

^{lxxxviii} Colleen Long and Jennifer Peltz, "NYPD slow: Times Square had 1 million reveling, zero tickets written," *Washington Post*, January 10, 2014, http://www.washingtonpost.com/politics/nypd-slow-times-square-had-1-million-reveling-zero-tickets-written/2015/01/10/f1d20ace-98fc-11e4-8005-1924ede3e54a_story.html, retrieved October 8, 2015.

^{lxxxix} Kevin Sheehan and Yaron Steinbuch, "Garner's daughter joins memorial of slain cops," *New York Post*, December 22, 2014, <http://nypost.com/2014/12/22/memorial-for-executed-nypd-cops-draws-mourners/>, retrieved September 24, 2014.

^{xc} "Key Developments in Case of 2 Slain NYPD Officers," *Associated Press*, December 23, 2014, as reported in *Fox 11 News*, <http://fox11online.com/news/nation-world/key-developments-in-case-of-2-slain-nypd-officers>, retrieved September 22, 2015.

^{xc} News clip from Fox News Live, captured by Real Clear Politics. "Giuliani: We've had 'months of propaganda' that people should hate the police," Real Clear Politics Video, December 22, 2014, <http://www.realclearpolitics.com/video/2014/12/22/rudy-giuliani-weve-had-four-months-of-propaganda-from-obama-tha-t-everybody-should-hate-police.html>, retrieved September 24, 2015.

^{xcii} Jeremy Diamond, "Blame piles on NYC mayor for cop shooting," CNN, December 21, 2014, <http://edition.cnn.com/2014/12/21/politics/gop-pols-blame-nyc-mayor-for-cop-shooting/>, retrieved September 23, 2015.

^{xciii} "Meet the Press, 12-28-14—Bratton says police feel 'under attack' but frustrations are 'the tip of the iceberg,'" NBC Universal Media Village, <http://www.nbcumv.com/news/%E2%80%9Cmeet-press%E2%80%9D-122814-bratton-says-police-feel-%E2%80%9Cunder-attack%E2%80%9D-frustrations-are-%E2%80%9Ctip-iceberg%E2%80%9D>, retrieved September 24, 2015.

^{xciv} "Confidence in Institutions," June 2-7, 2015, Gallup, <http://www.gallup.com/poll/1597/confidence-institutions.aspx?version=print>, retrieved October 6, 2015.

^{xcv} Ta-Nehisi Coates, "Blue Lives Matter," *Atlantic*, December 22, 2014.

^{xcvi} Ta-Nehisi Coates, "Blue Lives Matter," *Atlantic*, December 22, 2014.

^{xcvii} Ta-Nehisi Coates, *Between the World and Me*, Spiegel & Grau, New York, 2015, p.78.

^{xcviii} "Guiding Principles," Black Lives Matter website, <http://blacklivesmatter.com/guiding-principles/>, retrieved October 6, 2015.

^{xcix} PBS' *Race: The Power of an Illusion*/Background Readings/Interview with John A. Powell, California Newsreel, 2003, published by the Public Broadcasting Service, http://www.pbs.org/race/000_About/002_04-background-03-06.htm, retrieved October 31, 2015.

^c PBS' *Race: The Power of an Illusion*/Background Readings/Interview with John A. Powell, California Newsreel, 2003, published by the Public Broadcasting Service, http://www.pbs.org/race/000_About/002_04-background-03-06.htm, retrieved October 31, 2015.

^{ci} "The Case for Reparations," *The Atlantic*, June 2014, <http://www.theatlantic.com/magazine/archive/2014/06/the-case-for-reparations/361631/>, retrieved November 1, 2015.

^{cii} PBS' *Race: The Power of an Illusion*/Background Readings/Interview with John A. Powell, California Newsreel, 2003, published by the Public Broadcasting Service, http://www.pbs.org/race/000_About/002_04-background-03-06.htm, retrieved October 31, 2015.

^{ciii} Richard Rothstein, "Segregation has Never Really Ended: The Link Between Housing and Education," The Sidney Hillman Foundation, May 2014, http://www.hillmanfoundation.org/sites/default/files/SHF_OnTheIssues_140506_Rothstein.pdf, retrieved October 31, 2015.

^{civ} Richard Rothstein, "Segregation has Never Really Ended: The Link Between Housing and Education," The Sidney Hillman Foundation, May 2014, http://www.hillmanfoundation.org/sites/default/files/SHF_OnTheIssues_140506_Rothstein.pdf, retrieved October 31, 2015.

^{cv} Tony L. Whitehead, "The Formation of the U.S. Racialized Urban Ghetto," Cultural Systems Analysis Group, September 15, 2000, <http://www.cusag.umd.edu/documents/workingpapers/rugone.pdf>, retrieved October 31, 2015.

^{cvi} Tony L. Whitehead, "The Formation of the U.S. Racialized Urban Ghetto," Cultural Systems Analysis Group, September 15, 2000, <http://www.cusag.umd.edu/documents/workingpapers/rugone.pdf>, retrieved October 31, 2015.

^{cvi} Tony L. Whitehead, "The Formation of the U.S. Racialized Urban Ghetto," Cultural Systems Analysis Group, September 15, 2000, <http://www.cusag.umd.edu/documents/workingpapers/rugone.pdf>, retrieved October 31, 2015.

^{cvi} "Ta-Nehisi Coates on Police Brutality, the Confederate Flag, and Forgiveness," *Fresh Air*, NPR, July 13, 2015.